

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on March 11, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **April 14, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Parking Ratios Discussion – Aaron Ardmore & Bill Peperone

Public Hearings

- Item 1 The Airport Services Department requests Project Plan approval for additions to the Provo Airport Terminal in the Airport (A) Zone, located at 1331 S Sky Way. Provo Bay Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20250625
- * Item 2 *****CONTINUED***** Development Services requests Ordinance Text Amendments to Provo City Code 14.37 to add a reduction for projects near bus rapid transit stations and to amend associated parking regulations. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20260080
- * Item 3 PEG Development requests Ordinance Text Amendments to Provo City Code 14.23 (ITOD Zone) in association with a proposed mixed-use redevelopment project in a proposed ITOD (Interim Transit Oriented Development) Zone. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20250243
- * Item 4 Brixton Capital requests a General Plan Map Amendment from the Commercial (C) designation to the Transit Oriented Development (TOD) designation for 23 acres of land located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLGPA20250235
- * Item 5 Brixton Capital requests a Zone Map Amendment from the RM (Manufactured Home Park) and SC3 (Regional Shopping Center) Zones to the ITOD (Interim Transit Oriented Development) Zone for 23 acres of land located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20250236
- Item 6 Brixton Capital requests Concept Plan approval for a mixed-use redevelopment project over 23 acres of land in a proposed ITOD (Interim Transit Oriented Development) Zone, located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLCP20250237

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.



PROVO CITY CORPORATION
DEVELOPMENT SERVICES DEPARTMENT
Planning Commission Agenda
March 11, 2026

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff recommendations are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff recommendations are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/planningcommission.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



ITEM 1 The Airport Services Department requests Project Plan approval for additions to the Provo Airport Terminal in the Airport (A) Zone, located at 1331 S Sky Way. Provo Bay Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20250625

Applicant: Provo Airport Services Department

Staff Coordinator: Dustin Wright

Property Owner: PROVO CITY CORPORATION

Parcel ID: 21:032:0005

Current Legal Use:

Airport

Relevant History:

The updated airport terminal was completed in 2022, and phase II was approved in 2025. This is the third phase.

Neighborhood Issues:

No issues have been received by staff.

Summary of Key Issues:

- This phase will add (3) new gates to the existing (4) gate terminal.
- In total, phase III will add 50,000 square feet
- The Airport Director has approved parking for this project as required by code.
- The Coordinator Review Committee has approved the project plan.

POSSIBLE ACTIONS:

1. **Approve** the requested Project Plan. *This action would be consistent with the findings of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 25, 2026 6:00 P.M.*
3. **Deny** the requested Project Plan. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

BACKGROUND

The applicant for this item is the Provo Airport Services Department. The request is for the next phase of the airport terminal that will add three new gates, bringing the total to seven gates in the terminal.

Phase III will add 50,000 square feet of gate hold room, future baggage handling space, and airport tenant lease space to the north side of the existing airport terminal.

The Coordinator Review Committee reviewed the project and has approved the project plan. Some existing parking will be displaced by the terminal expansion, but there is additional parking capacity in the long-term and overflow parking areas. The Airport Director has approved parking for this project as required by code.

FINDINGS OF FACT

1. The property is located in the Airport (A) zone.
2. Building height allowed in code is 65' and the proposed building height is 36'. (14.17D.060)
3. Airport terminals are permitted in the zone.
4. Parking is to be approved by the airport director per 14.17D.070.
5. The airport director has approved the parking for this project.

STAFF ANALYSIS

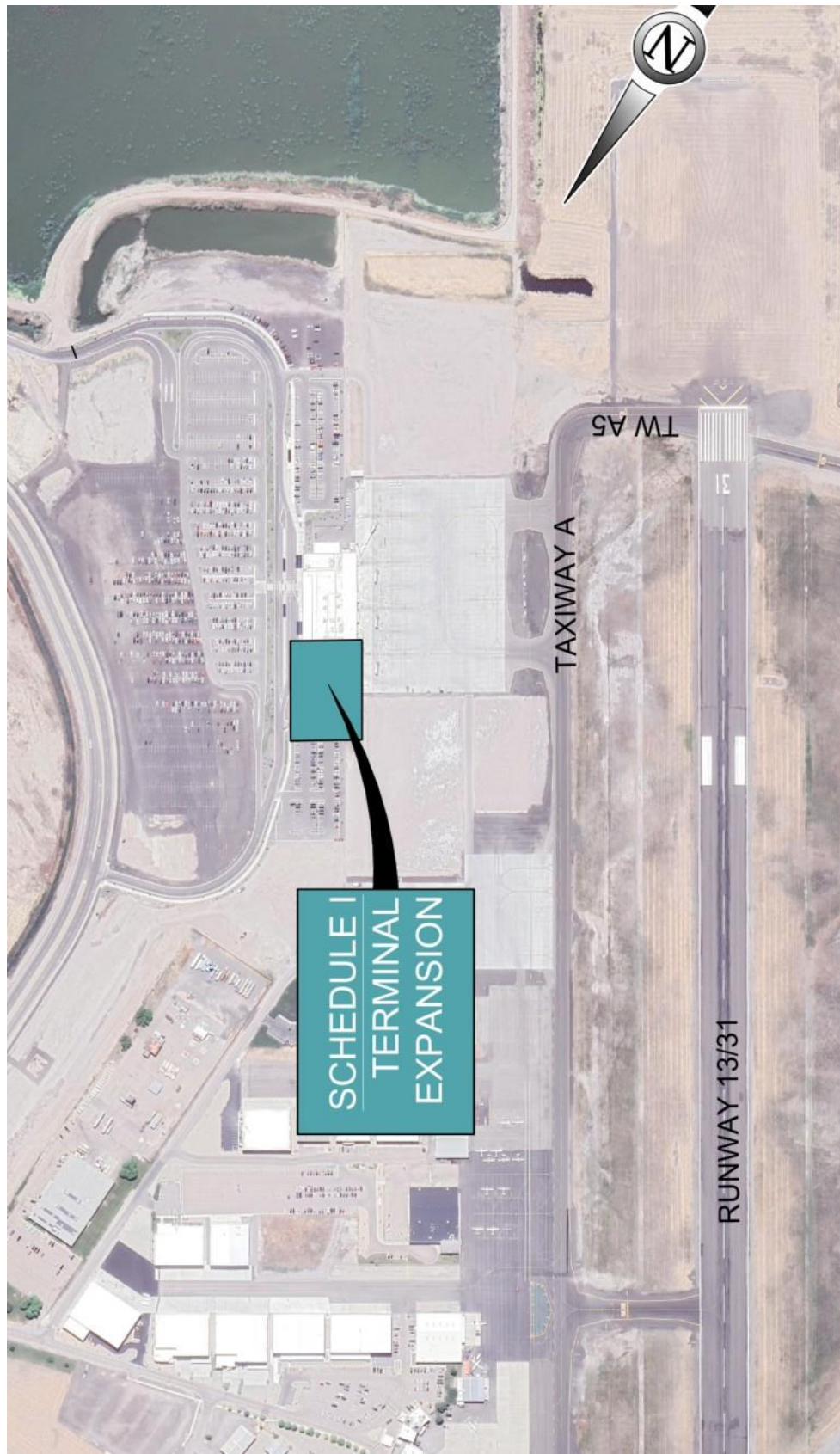
The location of the airport terminal is setback quite far from the parcel lines and Lakeview Parkway. The building height complies with the zone requirements and will not have an impact on adjacent properties.

The code requires that the Airport Director determine the number of parking spaces required. The Airport Director has determined that the parking for the expansion is sufficient to meet the needs of the airport. The overall parking supply available to passengers, employees, and visitors will continue to meet anticipated peak demand.

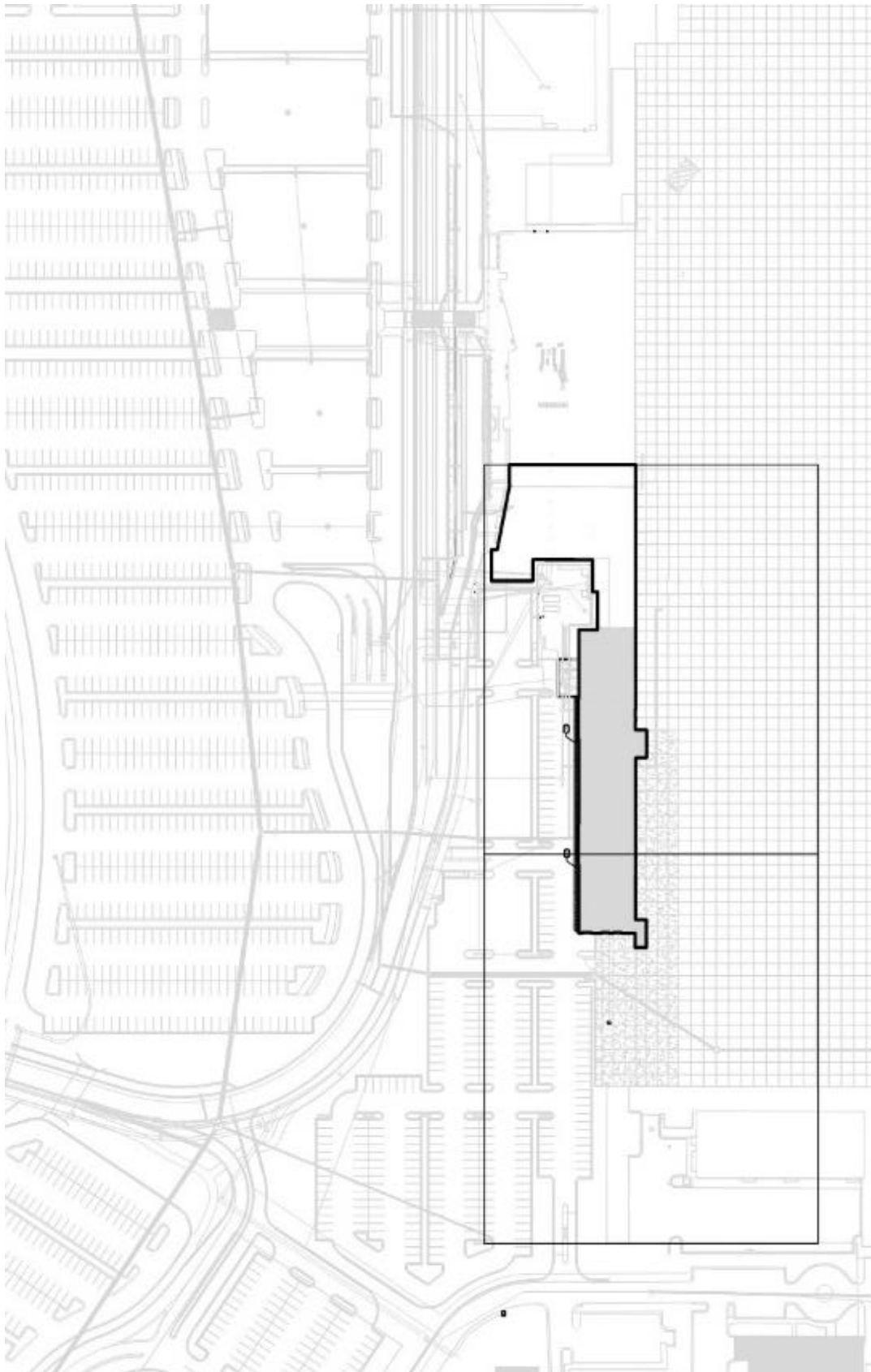
ATTACHMENTS

1. Aerial
2. Site Plan
3. Floor Plans
4. Elevations
5. Phasing Plan
6. Parking Letter

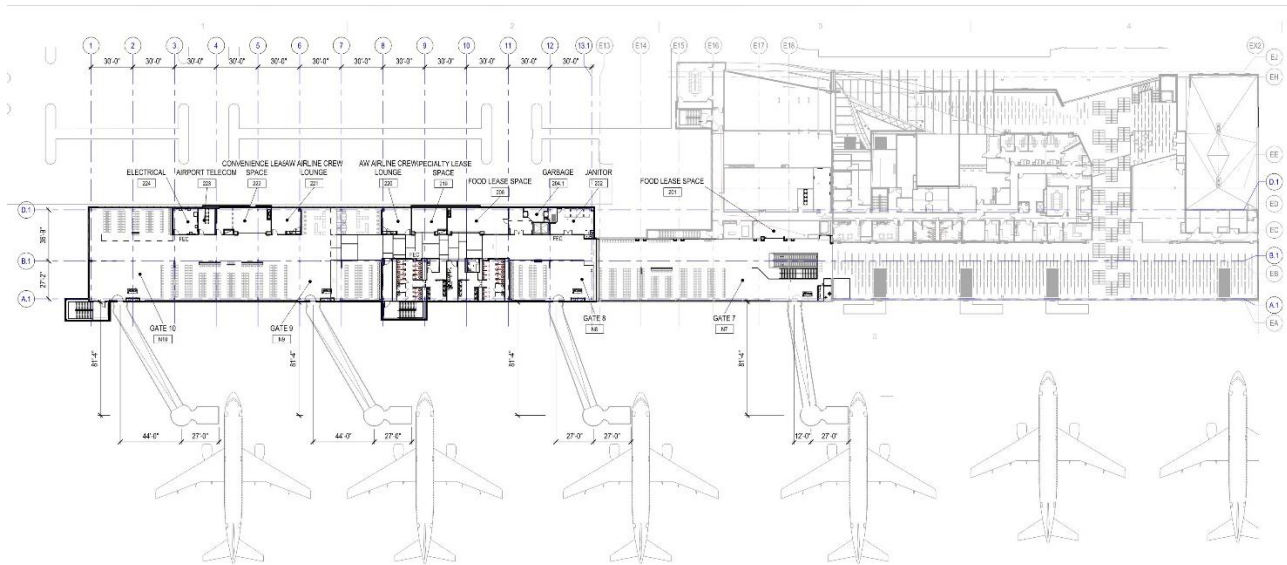
ATTACHMENT 1 – AERIAL



ATTACHMENT 2 – SITE PLAN



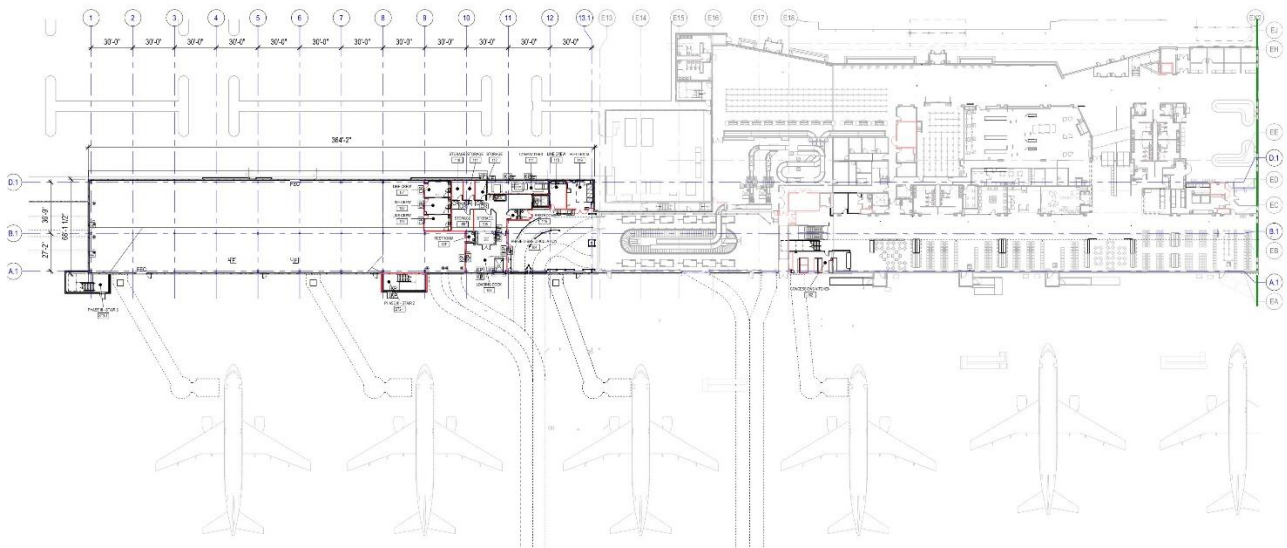
ATTACHMENT 3 – FLOOR PLANS



SECOND FLOOR OVERALL PLAN - PHASE III NORTH

SCALE: 1/32" = 1'-0"

0 16'-0" 32'-0" 64'-0"



FIRST FLOOR OVERALL PLAN - PHASE III NORTH

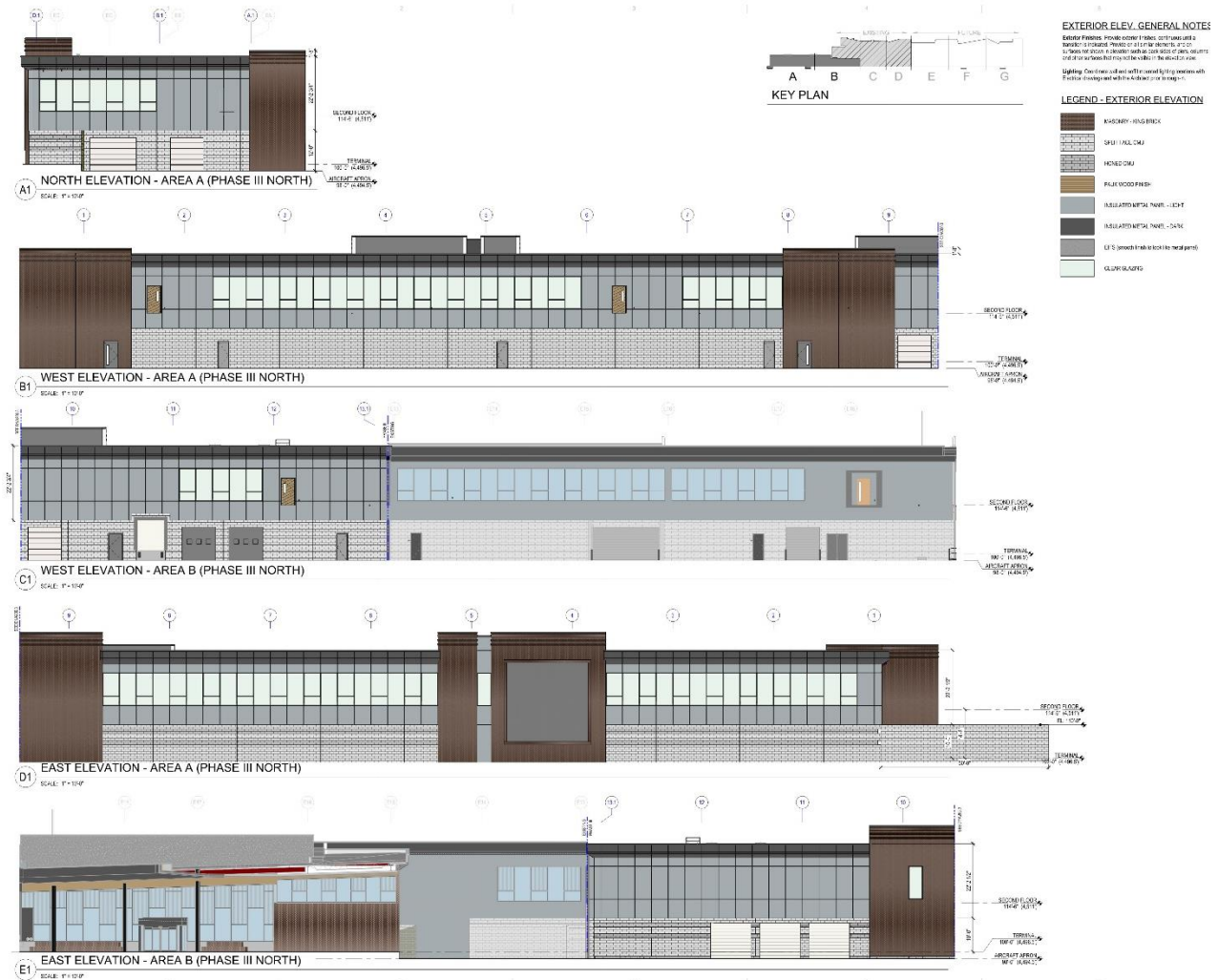
SCALE: 1/32" = 1'-0"

0 16'-0" 32'-0" 64'-0"

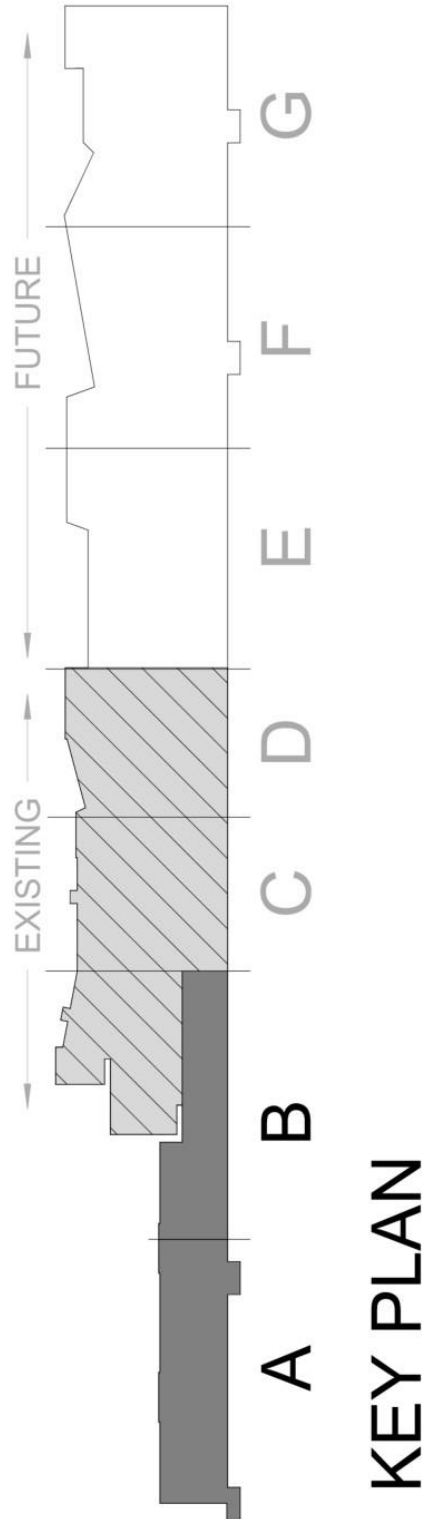


A
KEY PL

ATTACHMENT 4 – ELEVATIONS



ATTACHMENT 5 – PHASING PLAN



ATTACHMENT 6 – PARKING LETTER



PROVO AIRPORT
TEL (801) 852-6715
1331 South Sky Way
Provo, UT 84601

Dear Planning Staff,

I am writing in my capacity as Airport Director to provide confirmation of parking adequacy in support of the proposed Provo Airport Terminal Expansion – Phase III (PLPPA20250625).

Pursuant to Provo City Code Section 14.17D.070, the Airport Director or designee is authorized to determine the number of parking spaces required based on the demand of the permitted use within the Airport (A) Zone. Based on a review of current parking supply, projected passenger demand, and the operational impacts of the terminal expansion, I have determined that the parking shown on the submitted project plans is sufficient to meet the needs of the airport.

The project will result in the displacement of a limited number of existing parking spaces located adjacent to the terminal. These spaces are part of our employee parking lot, which has been temporarily relocated to our long-term parking lot. The overall parking supply available to passengers, employees, and visitors will continue to meet anticipated peak demand, throughout the duration, and following completion of the project.

The airport maintains additional parking capacity within its long-term and overflow parking areas, which provides flexibility to accommodate future growth and operational needs. Taken together, the remaining and reconfigured parking shown on the plans provides adequate parking in compliance with City Code requirements.

Accordingly, I support the project as proposed and confirm that the parking provided is sufficient for the intended use of the facility.

Please feel free to contact me if additional clarification or documentation is required.

Sincerely,

A handwritten signature in blue ink, appearing to read "B. Torgersen", with a stylized flourish extending from the end.

Brian Torgersen, P.E., C.M.
Airport Director
Provo Airport

- *ITEM 3** PEG Development requests Ordinance Text Amendments to Provo City Code 14.23 (ITOD Zone) in association with a proposed mixed-use redevelopment project in a proposed ITOD (Interim Transit Oriented Development) Zone. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20250243

Applicant: PEG Development (Tyler Phelps), Brixton Capital (Kyle Godat)

Staff Coordinator: Aaron Ardmore

POSSIBLE ACTIONS:

1. **Recommend approval** of the requested ordinance text amendments. *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 25, 2026, 6:00 P.M.*
3. **Recommend Denial** of the requested ordinance text amendments. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Relevant History: The ITOD zone was adopted in 2009 with the understanding that it would be replaced with a permanent TOD (Transit-Oriented Development) zone later. Though the ITOD zone has been amended several times (2014, 2017, 2020, 2021, 2022, 2024, and 2025); these proposed amendments were identified as needed by the applicant to develop the redevelopment concept they are bringing forward. Staff indicated to them that since the zone is to be replaced in the upcoming year, they should ask for changes they would need so staff could evaluate their concept and the future TOD zone against the proposed amendments. However, these amendments still have “citywide” impact.

Neighborhood Issues: The proposed amendments were not specifically detailed in the neighborhood meeting on June 13th when the overall concept was introduced to District 5 (Central District), but there are several comments regarding the overall proposal since that meeting attached to the related reports (PLGPA20250235 – Item 4; PLRZ20250236 – Item 5).

Summary of Key Issues: Proposed amendments:

- Adding townhomes as permitted uses and increasing minimum square footage for specific uses (PCC 14.23.020);
- Adding an exception to lot standards for owner-occupied units (PCC 14.23.030-050);
- Removing maximum setbacks (PCC 14.23.070);
- Removing “transitional building height” standards (PCC 14.23.095);
- Decreasing minimum habitable main floor depth (PCC 14.23.140); and
- Various updates (PCC 14.23.150-160).

OVERVIEW

The redevelopment team for the mall, including the applicants, PEG and Brixton, have proposed a series of text amendments for the ITOD zone that would enable them to build the products and concepts shown in the mall redevelopment plans. However, these amendments would have citywide impact on any property currently in the ITOD zone or with future application of the ITOD zone.

The specific amendments are proposed as follows:

PCC 14.23.020: add Standard Land Use (SLU) code 1112, single-family dwelling, attached (townhome) to the list of uses permitted by-right in the ITOD Zone;

PCC 14.23.020: increase the square footage standard from 2,500 square feet to 10,000 square feet for permitted uses that become conditional uses if they are larger than the stated number (meaning any use listed below that paragraph currently becomes a conditional use if it is in a space larger than the 2,500 sq. ft.);

PCC 14.23.030: provide an exception to lot area for “dwelling units intended for owner-occupancy”;

PCC 14.23.040: provide an exception to lot width for “dwelling units intended for owner-occupancy”;

PCC 14.23.050: provide an exception to lot frontage for “dwelling units intended for owner-occupancy”, remove the 100-foot distance standard for lot frontage, and allow private street frontage to count;

PCC 14.23.070: remove the six-foot maximum front yard requirement (leaving no minimum or maximum setback);

PCC 14.23.070: remove the six-foot maximum side yard requirement (leaving no minimum or maximum setback);

PCC 14.23.070: add a “transitional yard requirement” of one foot for each two feet of building height, when adjacent to a residential zone;

PCC 14.23.095: remove entire Transitional Building Height section (replaced with above proposal for “transitional yard requirement”);

PCC 14.23.140: reduce the minimum habitable main floor depth requirement on a primary street from forty feet to thirty feet;

PCC 14.23.140: reduce the minimum habitable main floor depth requirement on a secondary street from thirty feet to twenty-five feet;

PCC 14.23.150: remove prohibition of slider doors and slider windows for street frontage facades; and

PCC 14.23.160: remove ground-floor location restriction for 50% outdoor amenities allowance (meaning that up to 50% of required amenities can be located in any outdoor space, not just at ground level).

STAFF ANALYSIS

Staff analysis for this number of amendments can get convoluted. Therefore, staff have identified key areas for support or concern in the analysis below, noting section numbers. Staff's comfort with the proposed amendments varies but is reliant on the fact that the scope of the changes should be somewhat limited as the ITOD zone is set to be replaced with a new TOD zone this year.

Staff analysis is provided by reviewing the proposals against the criteria of Provo City Code 14.02.020, below. The applicant has also prepared analysis and justification for these proposed amendments and is attached to this report ("Amendment Justification" – attachment #2).

Before recommending an amendment to this Title, the Planning Commission shall determine whether such amendment is in the interest of the public and is consistent with the goals and policies of the Provo City General Plan. The following guidelines shall be used to determine consistency with the General Plan:

(a) Public purpose for the amendment[s] in question.

Staff response: The applicant has stated that the purpose of the proposed amendments is to provide greater flexibility in providing a dense, mixed-use environment with affordable, owner-occupied housing.

(b) Confirmation that the public purpose is best served by the amendment[s] in question.

Staff response: Staff believe that the above purpose could be met under the current ITOD zone regulations, as has been done before. However, while the scale and design of a mixed-use environment are important, these proposed changes would allow the developer to move forward with their plans and should have limited impact elsewhere as the city adopts a new TOD zone. There is some concern regarding the proposal to remove setback maximums (PCC 14.23.070) and to not define a required street frontage distance (PCC 14.23.050). Also, jumping from a 2,500 sq. ft. scale to a 10,000 sq. ft. scale (PCC 14.23.020) may not provide for the human-scale, walkable environment that a transit-oriented development should provide.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives.

Staff response: The applicant has identified sections of the General Plan that support these changes, specifically related to providing more mixed-use development, alternative housing options, and increased density around transit. As noted above, these goals and objectives could be met without the proposed amendments, though they may help with this specific plan.

Others, such as allowing slider windows (PCC 14.23.150), cleaning up transition standards (PCC 14.23.070 and 14.23.095), adjusting habitable space requirements (PCC 14.23.140), and allowing upper story outdoor spaces to be counted easier for amenities (PCC 14.23.160) can allow developers to make more efficient use of the land, as described within the policies of the General Plan and its' appendices.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated.

Staff response: There are no timing and sequencing issues related to this proposal.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies.

Staff response: While the proposed amendments can help meet some General Plan goals like encouraging mixed-use development, infill, and housing next to transit (GP, ch.4); they may also have some hinderance on some transportation goals (GP ch.6) related to connectivity, congestion, and mobility.

(f) Adverse impacts on adjacent landowners.

Staff response: Does not apply (citywide impact).

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Staff response: Does not apply (citywide impact).

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Staff response: Does not apply (citywide impact).

CONCLUSIONS

Staff have reviewed the proposed amendments, and while there are design alternatives that could prevent some of the proposed amendments or alternate amendments that could limit the impact on the ITOD zone, staff understand the needs of the applicant to move these proposals forward at this time. This ordinance text amendment is one of many requests from the applicant in order to redevelop the Provo mall, which is an important goal for Provo City.

ATTACHMENTS

1. Proposed Amendments
2. Applicant "Amendment Justification"

ATTACHMENT 1 – PROPOSED AMENDMENTS

Chapter 14.23

INTERIM TRANSIT ORIENTED DEVELOPMENT ZONE

Sections:

- [14.23.010 Purpose and Objectives.](#)
- [14.23.020 Permitted Uses.](#)
- [14.23.022 Temporary Uses.](#)
- [14.23.025 Residential Mixed Use Requirements.](#)
- [14.23.030 Lot Area.](#)
- [14.23.040 Lot Width.](#)
- [14.23.050 Lot Frontage.](#)
- [14.23.060 Prior Created Lots.](#)
- [14.23.070 Yard Requirements.](#)
- [14.23.080 Projections into Yards.](#)
- [14.23.090 Building Height.](#)
- [14.23.095 Transitional Building Height.](#)
- [14.23.100 Distance Between Buildings.](#)
- [14.23.110 Permissible Lot Coverage.](#)
- [14.23.120 Parking, Loading, and Access.](#)
- [14.23.130 Project Plan Approval.](#)
- [14.23.140 Minimum Habitable Main Floor Depth.](#)
- [14.23.145 Minimum and Average Residential Unit Size.](#)
- [14.23.150 Architectural Standards.](#)
- [14.23.155 Design Standards.](#)
- [14.23.160 Other Requirements.](#)
- [14.23.170 Explanatory Graphics.](#)

14.23.010

Purpose and Objectives.

The Interim Transit Oriented Development (ITOD) Zone is established to provide interim zoning measures while more comprehensive transit oriented development plans and ordinances are formulated for the planned intermodal hub area and other key transportation related locations within the City. These interim measures are intended to prevent land uses and development that would hinder long-range City goals while achieving quality housing, attracting long-term

residents, on properties surrounding the proposed Intermodal Hub site. This zone's primary use is for residential and residential/support mixed-use development which is intended to provide housing and business opportunities adjacent to public transit and thereby facilitate increases in the use of public transit and reduce City-wide traffic and congestion elsewhere. The ITOD zone is characterized by clean, well-lighted streets, ample pedestrian ways, and attractive, inviting, and residential uses, well-maintained shops, stores, offices, with a mixed use design. This zone will tend to encourage an architectural theme which will strengthen the continuity of the ITOD area and give it an identity with which the citizens of Provo can identify.

14.23.020

Permitted Uses.

- (1) Those uses or categories of uses as listed herein, and no others, are permitted in the ITOD zone.
- (2) All uses contained herein are listed by number as designated in the Standard Land Use Code published and maintained by the Planning Commission. Specific uses are identified by a four (4) digit number in which all digits are whole numbers. Classes or categories of such uses permitted within the zone are identified by a four (4) digit number in which the last one (1) or two (2) digits are zeroes.
- (3) All such categories listed herein and all specific uses contained within them in the Standard Land Use Code will be permitted in the ITOD zone, subject to the limitations set forth.
- (4) *Permitted Principal Uses.* The following principal uses and structures, and no others, are permitted in the ITOD zone:

Use No.	Use Classification
1112	Single family dwelling, attached
1131	Multiple family dwelling
1140	Multiple family dwelling (low rise attached, stand alone or attached to

Use No.	Use Classification
	commercial or other nonresidential use as a mixed-use project)
1150	Multiple family dwelling (high rise attached, stand alone or attached to commercial or other nonresidential use as a mixed-use project)
1250	Religious quarters
1291	Residential facility for elderly persons (see Section 14.34.230 , Provo City Code)
1292	Residential facility for persons with a disability (see Section 14.34.230 , Provo City Code)
1300	Residential hotels
4100	Railroad, rapid rail transit and street railway transportation
4210	Bus transportation (except 4214)
4290	Motor vehicle transportation
4600	Automobile parking, including park and ride lots and intermodal hubs (except 4603, long term storage of autos, trucks, boats, vacation trailers, etc.)
4811	Electric transmission right-of-way (identifies areas where the surface

Use No.	Use Classification
	is devoted exclusively to the right-of-way of the activity)
4821	Gas pipeline right-of-way (identifies areas where the surface is devoted exclusively to the right-of-way of the activity)
4824	Gas pressure control stations
4831	Water pipeline right-of-way (identifies areas where the surface is devoted exclusively to the right-of-way of the activity)
4835	Irrigation distribution channels
4836	Water pressure control stations and pumping plants
4837	Water utilities or irrigation company office
4841	Sewage pipeline right-of-way (identifies areas where surface is devoted exclusively to right-of-way activity)
4844	Sewage pumping stations
4853	Refuse disposal company office
4862	Gas and electric utility company office

Use No.	Use Classification
4863	Water and electric utility company office
4864	Combination utilities right-of-way (identifies areas where surface is devoted exclusively to right-of-way activity)
4873	Storm drain or right-of-way (predominantly covered pipes or boxes)

Land use categories below are allowed as a permitted use only if they are ~~two~~ten thousand (~~2,500~~10,000) square feet or less in size (gross square footage). Land use categories below that consist of gross building square footage in excess of ~~two~~ten thousand ~~five hundred~~ (~~2,500~~10,000) square feet shall be approved only as a conditional use.

4923	Travel agencies
5390	Retail trade - general merchandise
5400	Food stores (groceries, meats and fish, fruits and vegetables, candy, nuts, dairy products, bakeries, etc.)
5490	Miscellaneous retail food establishments
5600	Apparel and accessories
5700	Furniture, home furnishings, and equipment (10,000 square foot maximum building size, no outdoor storage)

- 5810 Eating places (restaurants)
- 5910 Drug and proprietary stores
- 5930 Antiques and second-hand merchandise (indoor only) (except 5935, 5938, 5939)
- 5940 Books, stationery, art, and hobby supplies
- 5950 Sporting goods, bicycles, and toys
- 5969 Garden supplies (entirely within a building only)
- 5970 Jewelry
- 5990 Miscellaneous retail stores (includes florists, cigars, newspapers and magazines, photo supplies, pet stores, and other similar retail stores)
- 6100 Banks, insurance, and real estate (office only)
- 6200 Personal services - including laundry, photography, beauty and barber services, clothing repair, etc. (except 6240)
- 6297 Athletic clubs, body building studios, spas, aerobic centers (no gymnasiums)

- 6300 Business services (office and retail sales only, except 6370, 6380, 6394 and 6397)
- 6500 Professional services (except 6515 Behavior, drug and alcohol treatment; office only)
- 6800 Educational services
- 6910 Religious activities
- 6911 Churches, synagogues, temples, and missions
- 6912 Religious reading rooms
- 6919 Other religious activities
- 7100 Cultural activities
- 7398 Video rental shops

(5) *Permitted Accessory Uses.* Accessory uses and structures are permitted in the ITOD zone provided they are incidental to, and do not substantially alter the character of the permitted principal use or structure. Such permitted accessory uses and structures include, but are not limited to, the following:

- (a) Accessory buildings such as garages, carports, equipment storage buildings, and supply storage buildings which are customarily used in conjunction with and incidental to a principal use or structure permitted in the ITOD zone;
- (b) Storage of materials used for construction of a building, including the contractor's temporary office, provided that such use be located on the building site or immediately adjacent thereto, and provided further that such use shall be permitted only during the construction period and thirty (30) days thereafter; and
- (c) Household pets, provided that no more than two (2) dogs and two (2) cats six (6) months of age or older shall be kept at any residence or commercial establishment at any

time. Nothing herein shall be construed as authorizing the keeping of any animal capable of inflicting harm or discomfort or endangering the health and safety of any person or property.

(6) *Conditional Uses*. The following uses and structures are permitted in the ITOD zone only after a conditional use permit has been issued, and subject to the terms and conditions thereof and the standards of Section [14.34.250](#), Provo City Code.

Use No.	Use Classification
4700	Communications
4814	Electricity regulating substations
4815	Electric utility company office
4818	Small generation
4819	Other electric utility, NEC
4825	Gas company office
4829	Other gas utilities, NEC
4834	Water storage as part of a utility system (covered including water storage stand pipes)
6722	Police protection and related activities, branch (office only)
6900	Miscellaneous service organizations
7210	Entertainment and assembly including legitimate theater

Use No.	Use Classification
7212	Motion picture theaters (indoor)
7391	Coin-operated amusements
7396	Dance halls, ballroom
7397	Billiards and pool halls

(7) *Change of Use or Density.* In the ITOD zone, any change of land use or increase in housing density to an existing residential building shall require compliance with all provisions of this Chapter.

14.23.022

Temporary Uses.

Land use categories not authorized as either permitted, conditional, or accessory uses in the ITOD zone may be approved as a temporary use, subject to all requirements of Chapter 14.35.040 through 14.35.080, Provo City Code, and subject to the following:

- (1) The temporary use shall expire annually;
- (2) New construction or other significant property improvements shall not be authorized for the temporary use; and
- (3) No temporary business licenses shall be allowed in the ITOD zone after December 31, 2012.

14.23.025

Residential Mixed Use Requirements.

At least fifty (50) percent of the square footage of any new principal building and fifty (50) percent of a building addition in excess of five thousand (5,000) square feet shall be occupied by residential dwelling units. Residential use requirement may be satisfied in the same building or a different property located within the same ITOD zone.

14.23.030

Lot Area.

Except in the case of dwelling units intended for owner occupancy, ~~t~~The minimum lot area for any new development in the ITOD zone shall be twenty thousand (20,000) square feet. For the purpose of this Section, "new development" is defined as any new principal building or subdivision of a lot or parcel.

14.23.040

Lot Width.

Except in the case of dwelling units intended for owner occupancy, ~~e~~Each lot or parcel of land in the ITOD zone shall have an average width of not less than one hundred (100) feet.

14.23.050

Lot Frontage.

Except in the case of dwelling units intended for owner occupancy, ~~e~~Each lot or parcel of land in the ITOD zone shall abut a public street ~~or private drive for a minimum distance of one hundred (100) feet on a line parallel to the center of the street.~~

14.23.060

Prior Created Lots.

Lots or parcels of land which were created prior to December 12, 1974, shall not be denied a building permit solely for reason of nonconformance with the lot requirements of this Chapter.

14.23.070

Yard Requirements.

The following minimum yard requirements shall apply in the ITOD zone: (Note: All setbacks are measured from the property line.)

(1) *Front Yard.* No requirement, ~~except the front yard setback for any building shall not be greater than six (6) feet along any front yard~~ with the following exception:

- (a) No part of any building shall overhang the public right-of-way and no drainage shall be diverted into said public right-of-way. (See Section 14.21.150(4), Provo City Code, for canopy and marquee requirements.);

(2) *Side Yard*. No requirement, ~~except the side yard setback for any building shall not be greater than ten (10) feet with the following exception:~~

~~(a) In instances wherein a development cannot obtain interior lot vehicular access from a rear yard, alley, easement, or other right-of-way, a side yard may be increased to twenty (20) feet;~~

(3) *Side Yard - Corner Lots*. On a corner lot, the side yard contiguous to the street shall meet the same standards as Subsection (1) of this Section and shall not be used for vehicular parking except such portion as is devoted to driveway use for access to a garage or carport;

(4) *Side Yard - Driveway*. See Section [14.37.100](#), Provo City Code;

(5) *Side Yard - Accessory Building*. Accessory buildings are not permitted;

(6) *Rear Yard*. No requirement; and

(7) *Noise Buffer Setbacks*. Street side yards may be extended beyond the maximum setback limitations in the instance when property is located within one hundred (100) feet of a railroad track upon recommendation by the Design Review Committee. In determining the appropriateness of the increased setback, the approving body shall make the following finding in addition to the conditional use permit criteria:

(a) That the design of the area included in the increased setback enhances the public realm and is necessary to mitigate the sound impacts of the adjacent railroad tracks.

(8) *Transitional Yard Requirements*.

(1) Where a lot in an ITOD zone abuts a lot in any residential zone, building setback shall be at least one (1) foot for each two (2) feet of building height. Buildings over twenty (20) feet high shall be set back at least ten (10) feet.

14.23.080

Projections into Yards.

The following structures may be erected on or project into a required yard, provided it does not obstruct a required driveway:

(1) fences and walls in conformance with the Provo City Code and other City codes and ordinances;

- (2) landscaping elements including trees, shrubs, and other planting materials;
- (3) necessary appurtenances for utility services with property-impact protection if located adjacent to driveway areas; and
- (4) stairs not projecting beyond a property line. Access to commercial ground floor uses shall not be by means of stairs along a primary or secondary street.

14.23.090

Building Height.

The total maximum building height within the ITOD zone shall not exceed one hundred (100) feet according to the following:

- (1) Building height shall be measured in number of stories, excluding basement areas;
- (2) Each building shall not have less than two (2) stories;
- (3) Each story within the ITOD zone shall not exceed fourteen (14) feet except for first story commercial functions may be up to twenty feet (20);
- (4) Parapet walls and cornices shall not exceed five (5) feet, except as otherwise provided in Section [14.34.090](#), Provo City Code;
- (5) Residential main floor level shall not exceed three (3) feet in height above street curb elevation;
- (6) Commercial main floor level shall not exceed one (1) foot in height above street curb elevation; and
- (7) Mechanical equipment shall be screened. Only the minimal amount of screening necessary to fully screen such equipment shall be used. Mechanical equipment shall be setback in such manner that the required screening cannot be seen from the pedestrian street view, if possible.

14.23.095

Transitional Building Height.

- ~~(1) The maximum building height for buildings or portions of buildings in the ITOD zone located within one hundred (100) feet of, or directly across the street from, an RC, R1, R2 or PRO-R zone shall be a maximum of three (3) stories (not to exceed fifty [50] feet) for the first~~

~~one hundred (100) feet of building adjacent to the neighboring property or the first one hundred (100) feet of the building across the street.~~

~~(2) Buildings or portions of buildings in the ITOD zone located within fifty (50) feet of a property in an RC, R1, R2, or PRO-R zone or the first fifty (50) feet of buildings or portions of buildings in the ITOD zone located directly across the street from an RC, R1, R2, or PRO-R zone, shall be designed with a pitched or gabled roof.~~

~~(3) Buildings or portions of buildings in the ITOD Zone located adjacent to properties in an RC, R1, R2 or PRO-R zone shall have a twenty (20) foot landscaped buffer along the adjacent property line(s).~~

14.23.100

Distance Between Buildings.

No requirement except as regulated by the provisions of the adopted version of the International Building Code.

14.23.110

Permissible Lot Coverage.

No requirement except as may be dictated by necessary provision of off-street parking.

14.23.120

Parking, Loading, and Access.

(1) Each lot or parcel in the ITOD zone shall provide a minimum of seventy-five (75%) percent of the required off-street parking set forth in Section [14.37.060](#), Provo City Code, except as otherwise provided in Subsection [\(2\)](#) of this Section.

(2) Residential parking may be reduced to one (1) space per unit for one (1) bedroom units and to one and one-quarter (1 1/4) spaces for units with two (2) or more bedrooms subject to Planning Commission approval of a Transportation Demand Management (TDM) program as described in Section [14.37.050\(2\)](#), Provo City Code.

(3) All other requirements of Chapter [14.37](#), Provo City Code, shall apply.

14.23.130

Project Plan Approval.

See Sections [15.03.300](#) and [15.03.310](#), Provo City Code.

14.23.140

Minimum Habitable Main Floor Depth.

- (1) Each structure in the ITOD zone situated along a primary street shall have a minimum habitable main floor depth of ~~forty~~thirty (430) feet along the entire frontage yard line exclusive of permitted yards and driveway approaches.
- (2) Each structure in the ITOD zone situated along a secondary street shall have a minimum habitable main floor depth of ~~thirty~~twenty-five (3025) feet along the entire frontage yard line exclusive of permitted yards and driveway approaches.
- (3) For the purposes of this Section, primary streets are designated as Freedom Blvd. (200 West), 100 West, and 600 South. All other streets shall be designated as secondary streets.

14.23.145

Minimum and Average Residential Unit Size.

Each structure that includes a residential use shall provide a minimum unit size of no less than five hundred (500) square feet and a minimum average unit size of no less than eight hundred (800) square feet. This requirement shall not apply to institutional housing units (i.e., elderly housing, assisted living facilities, etc.).

14.23.150

Architectural Standards.

- (1) One (1) primary entrance door shall be provided for every fifty (50) feet of building frontage.
- (2) Each structure in the ITOD zone situated along a primary street shall provide the first story of the building face with a minimum of fifty (50) percent completely transparent glass and on secondary streets forty (40) percent completely transparent glass. Ground floor residential buildings shall provide twenty (20) percent completely transparent glass.

(3) Building wall materials shall be combined on each facade horizontally only, with the heavier elements below lighter elements.

(4) The exterior finish material on all buildings shall not consist of vinyl or metal siding (including sheet or corrugated metal), plywood, particle board or other wood products not intended as an architectural finish product, or manufactured stone.

(5) All windows and doors, with the exception of ground level shop fronts shall be square or vertical in proportion.

~~(6) Doors and windows that operate as sliders are prohibited on street frontages and facades.~~

(7) Pitched roofs, if provided, shall be symmetrically sloped no less than 5:12 on all elevations facing a public street. Pitched roofs for porches and attached sheds may be no less than 2:12.

(8) Windows and doors above the first story shall not exceed fifty (50) percent of the total building wall area, with each facade being calculated independently.

(9) Balconies consisting of a minimum area of fifty (50) square feet shall be provided for a minimum of fifty (50) percent of all residential units. Balconies may be inset into the building or project outward into the property line. Balconies facing a side or rear yard shall maintain a distance of at least ten (10) feet from the face of the balcony to the adjacent property line.

(10) All new buildings that are located within one hundred (100) feet of a rail road right-of-way shall include sound and vibration attenuating design and materials. Permit applicants shall provide documentation from an acoustical engineer that "best practices" for sound and vibration attenuation have been incorporated.

14.23.155

Design Standards.

(1) Design standards detailed in Section [14.34.295](#) (Downtown Development Design Standards), Provo City Code, shall apply to the ITOD zone.

(2) The standards set forth in Section [14.34.300](#) (Transitional Development Standards for Uses Abutting Residential Zones), Provo City Code, shall not apply in the ITOD zone, except for in Section [14.23.160\(7\)](#), Provo City Code.

14.23.160

Other Requirements.

- (1) *Signs*. See Chapter [14.38](#), Provo City Code.
- (2) *Uses Within Buildings*. All uses established in the ITOD zone shall be conducted entirely within a fully-enclosed building except those uses deemed by the Planning Commission to be customarily and appropriately conducted in the open, and other uses which are allowed by the Planning Commission to be conducted in the open through the granting of a conditional use permit. Uses customarily deemed to be conducted in the open may include, but are not limited to, outdoor dining, ice skating, and miniature golf.
- (3) *Landscaping*. See Chapter [15.20](#), Provo City Code. In any new project consisting of twenty (20) or more residential units, an area equivalent to ten percent (10%) of the residential gross floor area must be developed as usable open space or recreational amenities in accordance with the requirements set forth in Section [14.34.330](#), Provo City Code.
 - (a) Landscaping within the required setbacks and other required areas (such as distance provisions required by the International Building Code) shall not be calculated towards meeting this provision;
 - (b) Up to fifty percent (50%) of the required recreational amenity space may be located outdoors ~~at the ground level~~;
 - (c) Usable open space must be contiguous or accumulated to be functional as a recreational amenity or gathering space. Remnant spaces on the site will not be counted in the calculation of required usable open space.
- (4) *Canopies and Marquees*. See Chapter [14.34.490](#), Provo City Code.
- (5) *Trash Storage*. See Section [14.34.080](#), Provo City Code.
- (6) *Walls and Fences*.
 - (a) No wall, fence, or opaque hedge or screening material higher than thirty-six (36) inches shall be maintained within an area which would tend to inhibit a safe sight distance of traffic traveling upon a public street, or entering into the public street from a private driveway or alley.
 - (b) A decorative masonry wall, at least six (6) feet in height, shall be erected along all property lines which lie adjacent to a residential zone. In the case where a mutual

agreement exists between the property owners of the ~~commercial~~ITOD zone and the adjacent residential zone, the masonry wall requirement may be modified to allow other suitable materials. A signed agreement shall be submitted to the Planning Commission or its designee, indicating this agreement. In the case where no mutual agreement exists, the masonry wall shall be required.

(7) *Transitional Development Standards*. Where a non-residential use or mixed use in the ITOD zone borders a residential zone, the standards set forth in Chapter 14.34.300, Provo City Code, shall apply.

(8) *Sidewalk Cafes*. See Chapter ~~14.21.150(8)~~14.34.480, Provo City Code.

(Enacted 2009-02, Am 2020-38, Am 2022-43, Am 2024-09, Am 2025-15)

14.23.170

Explanatory Graphics.

See section [14.34.295](#)

ATTACHMENT 2 – APPLICANT “AMENDMENT JUSTIFICATION”

Provo City Code 14.23 Text Amendment Justification

14.23.020: Adjusting the maximum square footage to 10,000 for certain permitted uses (conditional use approval required above 10,000 square feet) is more reasonable for several of the uses listed. For example, many food, furniture (which already specifies a 10,000 square foot maximum size), sporting goods, fitness-related, and religious uses would not be feasible at 2,000-2,500 square feet. This change will allow for greater flexibility for retail uses in the ITOD zone while still preserving the higher-density residential focus of the zone. According to the General Plan, Provo residents want to see more mixed-use development. Placing unnecessary restrictions on this type of development makes it more difficult to execute. A broader range of allowable uses with a reasonable maximum square footage will help achieve Provo’s goal of creating places for businesses to thrive.

14.23.030 and 14.23.040: As currently written, these sections would not allow for the development of owner-occupied housing within the ITOD zone. The proposed Provo Towne Centre redevelopment includes townhome-style for-sale housing, but lot size and dimension requirements must be reduced to accommodate this type of housing. The provision of a mix of attainable housing options, particularly “missing middle” style owner-occupied townhomes, is one of the major objectives of the General Plan. It is also one of the stated purposes of the ITOD zone itself.

14.23.050: As written, this section also creates challenges for townhome-style units, which are often approached from a private drive or alleyway and will not meet the minimum frontage length requirement. Additionally, multifamily properties are often accessed by driveways leading to parking structures which may not be deeded to the public. This could present a particular issue for multifamily buildings that are interior to large parking lots such as the proposed mall redevelopment. The City will still have the ability to ensure adequate access and circulation as part of its project plan approval process.

14.23.070: As written, this section would make it difficult to develop large amenity areas such as the plaza proposed at the interface between the retail and residential portions of the Provo Towne Centre. It also creates potential interpretation challenges when applied to owner-occupied housing units that are part of a larger community-owned common area. The stated purpose of the zone, and one of the repeated themes of the General Plan, is to increase density in locations with good access to public transportation. Limiting setback requirements to those necessary for safety while providing flexibility for unique sites such as the Towne Centre Mall should help accomplish this objective.

The addition of 14.23.070 matches the transitional setback requirements for uses abutting residential zones that are already codified in 14.34.300.

14.23.095: The same standard should be applied to the ITOD zone as is applied to other uses abutting residential zones. Therefore, 14.23.095 should be eliminated. 14.23.160(7) already directs that the ITOD zone should be subject to the same Transitional Development Standards as other zones found in 14.34.300.

14.23.140: Because the aim of the ITOD zone is to encourage increased residential density near public transportation, minimum habitable floor depths should be compatible with typical multifamily residential development. Residential unit depths of greater than 30 feet lead to a reduction in the availability of natural light, which negatively impacts the quality of life of the residents.

14.23.150(6): Sliding doors and windows are desirable in that they provide natural ventilation and can be as aesthetically pleasing as other door and window products. They are commonly used in residential applications. Unless the City can demonstrate a sensible reason for this prohibition, it should be eliminated.

14.23.160(3)(b): Above-ground outdoor amenities, such as balconies and rooftop decks, are highly desirable to residents and should be included in the amenity square footage calculation.

14.23.160(6)(b): This language appears to have been borrowed from a commercial ordinance and has been updated to refer to the ITOD zone.

14.23.160(8): It appears the section referenced has been updated to a new location.

- *ITEM 4** Brixton Capital requests a General Plan Map Amendment from the Commercial (C) designation to the Transit Oriented Development (TOD) designation for 23 acres of land located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov
PLGPA20250235

Applicant: PEG Development (Tyler Phelps), Brixton Capital (Kyle Godat)

Staff Coordinator: Aaron Ardmore

Property Owners: PROVO CITY;
BRIXTON PROVO MALL LLC; BRIXTON
ACRES LLC (ET AL)

Parcel ID#:21:047:0021, 21:047:0022,
49:347:0002, 49:347:0003, 49:347:0004,
49:347:0005, 49:347:0007, 49:347:0012,

Acreage: 23.00

Number of Properties: 8

POSSIBLE ACTIONS

1. **Recommend Approval** of the requested General Plan Map Amendment. *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 25, 2026, 6:00 P.M.*
3. **Recommend Denial** of the requested General Plan Map Amendment. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Current Legal Use: Current uses within the map area are as follows (moving from west to east): a mobile home park in the RM zone, commercial retail space within the mall and associated parking lots in the SC3 zone, commercial auto pad in the SC3 zone.

Relevant History: The city has been working with the applicants on this redevelopment plan for the north side of the mall property since early 2025. The General Plan map has designated commercial (C) uses for the project area since 1999. The applicants were informed that this would need to be amended to the (TOD) designation to align with their concept plans. This application has been pending a hearing while staff worked through the details of the rezone and concept plan in separate applications.

Neighborhood Issues: This proposal was shared with District 5 (Central District) in their June 2025 meeting. The comments from that meeting and any received prior to this report are attached ("Neighborhood Feedback" – attachment 5) and include support, opposition, suggestions, and critique of the overall proposal.

Summary of Key Issues:

- Proposal to change from Commercial to TOD designation.
- Amendment would support associated rezone request and concept plans.
- Staff are working through concerns with phasing, infrastructure, and related requests.

OVERVIEW

As the redevelopment team for the mall talked over all the processes that need to be completed, this General Plan Map amendment from Commercial to TOD seemed the most simple but it has some significant details tied to it with the accompanying zone map amendment and concept plan applications, so it has had to wait until city staff were comfortable moving the entire proposal forward together.

The introduction of the TOD land use designation on the General Plan Map was with the 2009 General Plan comprehensive update. The description for this designation indicates that these areas should include “commercial, office and residential uses” with “pedestrian-scale design” that encourages “alternative transit”; while previous iterations included language to “reduce parking and auto ownership”, focusing on “enhancing transit ridership through carefully sited retail locations, civic and open spaces, and density.”

STAFF ANALYSIS

The shift to a TOD designation in this area makes sense considering the Utah Valley Express bus-rapid transit route comes through the eastern portion of the project area, and portions of the property are also within half a mile of the Frontrunner commuter rail station. If this area is redeveloped to be a harmonious pedestrian-scale environment, the TOD is the right land use designation. The first phase of the mall redevelopment will be important to tie the commercial and residential uses together and make sure it flows well into future phases and meets the intent of the TOD designation. The rezone and concept plan application staff reports will get more into those details, but there may be some crossover of analysis throughout these proposals.

Per Provo City Code 14.02.020, this General Plan Map amendment must be analyzed for consistency with the General Plan goals and policies under the following guidelines:

(a) Public purpose for the amendment[s] in question.

Staff response: The applicant’s statement to address this General Plan Map amendment is attached (“General Plan Amendment Justification” – attachment 3) and includes the following stated purpose: “Changing the designation of this area to TOD would help achieve multiple objectives of the General Plan, including providing increased density and infill development near public transportation, offering a mix of housing types and price points, and redeveloping a portion of the East Bay neighborhood”.

(b) Confirmation that the public purpose is best served by the amendment[s] in question.

Staff response: Staff believe that this amendment will achieve the stated public purpose above. Amending from Commercial to TOD helps to justify the associated zone map amendment and concept plan, which if realized, will help meet the goals stated in the applicant’s statement.

(c) Compatibility of the proposed amendment with General Plan policies,

goals, and objectives.

Staff response: This proposed General Plan Map amendment is compatible with the following goals:

GP, ch.3, goal 1: Strike a balanced approach in locating land uses that aligns transit, land use, economics, and open space.

GP, ch.4, goal 1b: Consider revising regulations to encourage development of a mix of housing types.

GP, ch.5, goal 1e: Encourage incorporation of gateway developments and compact commercial properties that integrate both social and retail needs into designated mixed-use centers.

DT Master Plan, ch.4. goal 2: Continue to amend regulations for new development as the area continues to evolve.

DT Master Plan, ch.5, goal 4: Create new outdoor gathering spaces.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated.

Staff response: There are concerns regarding available sewer infrastructure and needed roadway improvements related to the timing of this request. The city is continuing to work with the developer on agreements to address the phasing of construction, future sewer improvements, and roadway improvements through written agreements.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies.

Staff response: This General Plan map amendment has a potential to hinder attainment of goals and policies related to providing adequate infrastructure to all parts of the city. As noted above, the sewer demands of the proposed project would limit future connections without significant upgrades. The same is true for roadway improvements needed in and around the project area. The traffic study for this project has identified several nearby road improvements that would be needed at buildout (see "Traffic Study Recommendations" – attachment 4).

(f) Adverse impacts on adjacent landowners.

Staff response: Adverse impacts are evident with current residents of the Shady Acres mobile home park in the west portion of the project area, as they would be required to find new housing. There are also potential adverse impacts for the property owners adjacent to the project area related to increased traffic and increased light and noise disturbances.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Staff response: They are correct.

(h) In cases where a conflict arises between the General Plan Map and

General Plan Policies, precedence shall be given to the Plan Policies.

Staff response: Noted, staff have analyzed with precedence to the policies.

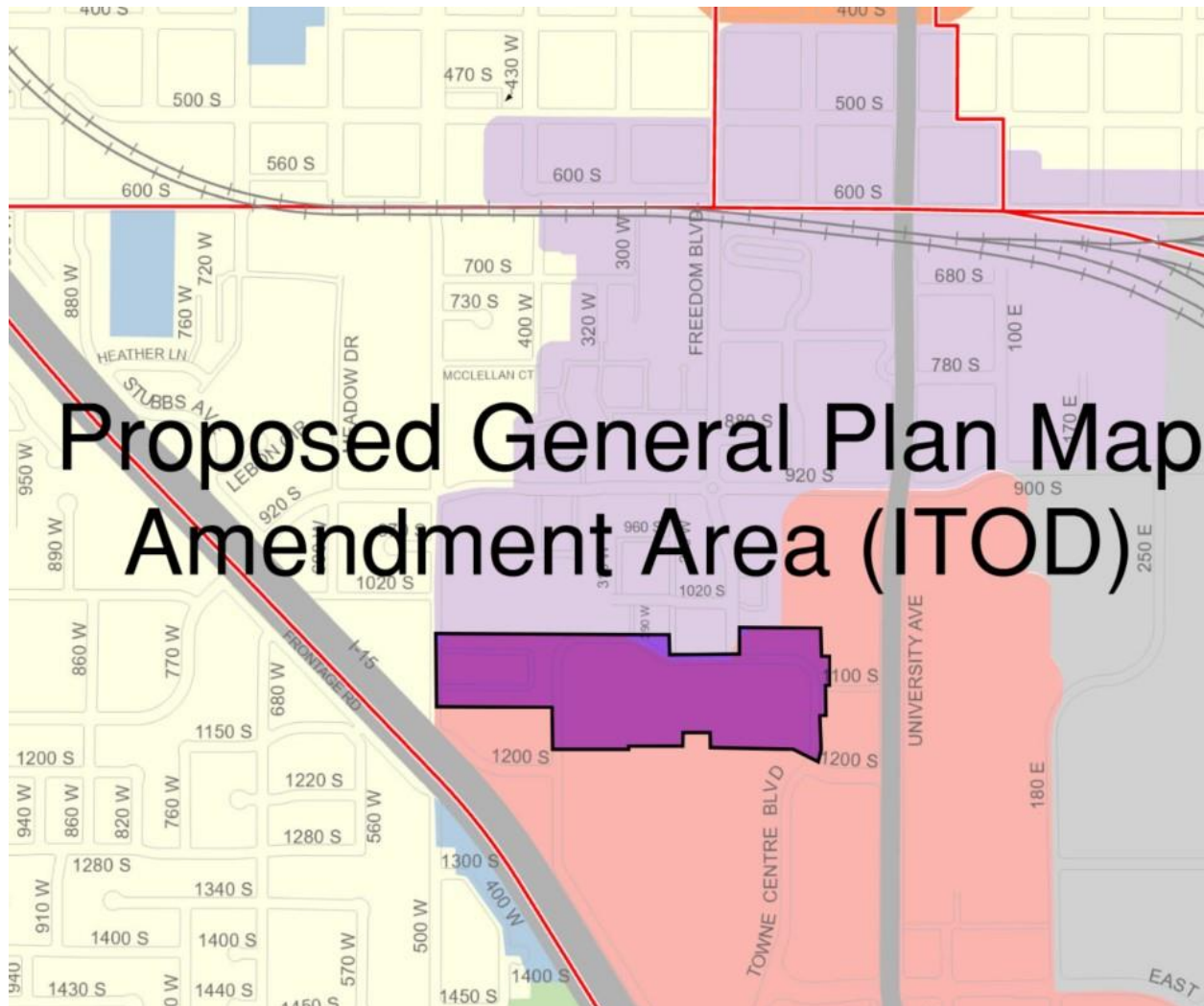
CONCLUSIONS

Staff have reviewed this General Plan amendment and believe it makes sense for the mixed-use environment that is being pursued. However, decision makers should carefully consider the impacts to the city sewer and road infrastructure, while also ensuring that the built environment meets the goals and purposes of the TOD designation through this request, along with the zone map amendment and concept/project plans. The City Council will also need to consider the related development agreement, HTRZ (Housing and Transit Reinvestment Zone) request, and PID (Public Infrastructure District) proposal tied to this overall development proposal.

ATTACHMENTS

1. Proposed General Plan Map
2. Legal Description
3. General Plan Amendment Justification
4. Traffic Study Recommendations
5. Neighborhood Feedback

ATTACHMENT 1 – PROPOSED GENERAL PLAN MAP



ATTACHMENT 2 – LEGAL DESCRIPTION

A part of Lots 2, 3, 4, 5 and 7 of the Amended Provo Towne Centre Mall Subdivision recorded 11 March, 1999 as Entry No. 29378 and as Map No. 7952 in the Official Records of Utah County, together with more land, located in the Southeast Quarter of Section 12, Township 7 South, Range 2 East, Salt Lake Base and Meridian, U.S. Survey, in the City of Provo, Utah County, Utah:

Beginning at a point on the Westerly line of said Lot 5, located 78.89 feet North 89°46'24" East along the South line of said Section 12; and 348.68 feet North 0°13'36" West from a Brass Cap Monument found marking the South Quarter Corner of Said Section 12; said South Quarter Corner is located 2652.80 feet South 89°46'24" West along said Section line from a Brass Cap Monument found marking the Southeast corner of said Section 12; and running thence North 0°43'46" East 174.84 feet along said Westerly line; thence North 89°38'01" West 564.35 feet to and along a fence called for in that certain Special Warranty Deed Entry No. 9949:2016 in the Official Records of Utah County, to the Westerly line of said Special Warranty Deed, also being the Easterly line of 500 West Street; thence North 0°23'54" East 386.94 feet along said Easterly line to the intersection thereof with the Southerly line of that certain Warranty Deed recorded November 30, 2009 as Entry No. 123118:2009 in the Official Records of Utah County; thence along said Southerly line the following three courses: North 89°55'54" East 113.37 feet; South 89°32'57" East 446.56 feet; and South 89°21'25" East 1.65 feet to the Northwest corner of said Lot 5; thence along the Northerly, Westerly and Easterly lines of said Amended Subdivision the following fifteen courses: South 89°21'25" East 318.08 feet; North 87°47'44" East 81.92 feet; South 87°04'33" East 68.53 feet; South 89°41'34" East 148.03 feet; South 1°34'26" East 107.69 feet; South 89°34'31" East 357.18 feet; North 0°16'18" West 155.24 feet to the Northwest corner of said Lot 4; South 89°34'31" East 222.84 feet; South 0°04'13" West 6.21 feet; South 89°03'39" East 254.20 feet to the Northeast corner of said Lot 7; South 0°09'33" West 150.86 feet; South 88°45'03" East 25.21 feet; South 0°41'03" West 152.27 feet; North 89°19'07" West 39.99 feet; and South 0°17'07" West 181.68 feet; thence North 89°19'07" West 37.10 feet to the Westerly line of said Lot 7; thence along said Westerly line and said Westerly line extended Southerly the following two courses: South 0°00'30" East 106.25 feet to a point of curvature; and Southwesterly along the arc of a 248.00 foot radius curve to the right a distance of 120.25 feet (Central Angle equals 27°46'56" and Long Chord bears South 13°52'58" West 119.08 feet); thence North 59°33'25" West 193.42 feet along a non-radial line to a point of curvature; thence Northwesterly along the arc of a 50.00 foot radius curve to the left a distance of 25.93 feet (Central Angle equals 29°42'49" and Long Chord bears North 74°24'50" West 25.64 feet) to a point of tangency; thence North 89°16'14" West 346.09 feet; thence North 0°43'46" East 94.13 feet; thence North 89°16'14" West 165.00 feet; thence South 0°43'46" West 75.67 feet; thence North 89°16'14" West 264.18 feet; thence South 0°43'46" West 22.26 feet; thence North 89°16'14" West 404.66 feet to said Westerly line of Lot 5 and the point of beginning.

Note: said Amended Plat and said Deeds have been rotated 30" counter-clockwise from the Plat record in order to match a NAD83(2011) Utah Central Zone reference to North.

Contains 1,002,813 sq. ft. Or 23.021 acres

ATTACHMENT 3 – GENERAL PLAN AMENDMENT JUSTIFICATION

120 S Sierra,
Solana Beach
CA 92075.

(858) 683-7100
info@brixtoncapital.com
brixtoncapital.com

B R I X T O N

DATE: May 7th, 2025

TO: Provo City

RE: Provo Town Center General Plan Amendment

Brixton Capital and PEG Development, on behalf of Brixton Provo Mall, LLC, and Brixton Acres, LLC, do hereby propose an amendment to the Provo City General Plan Designation for the area identified on the attached exhibit.

The area is currently designated as SC3 Commercial, and it is proposed that it be redesignated as Transit-Oriented Development (TOD). This change is in harmony with the intent of Provo City's 2023 General Plan and is necessary to adapt to the evolving demands of retail consumers and residents.

As part of an ongoing renovation plan, the property owner intends to redevelop a large portion of the Provo Towne Centre Mall with a mix of residential and commercial uses. The proposed mix of uses includes revitalized retail, dining, entertainment, professional office space, and other appropriate and beneficial uses. It also includes for-sale and for-rent housing, a portion of which is intended to be affordable.

Under the current general plan and zoning designations, this mix of uses would not be permitted, necessitating the General Plan Map change to TOD. The subject area is near UTA bus-rapid-transit (BRT) and Front-Runner commuter rail stations, and it is well-served by existing road infrastructure. It is also directly south of property already designated as TOD on the General Plan Map. Changing the designation of this area to TOD would help achieve multiple objectives of the General Plan, including providing increased density and infill development near public transportation, offering a mix of housing types and price points, and redeveloping a portion of the East Bay neighborhood.

To remain economically viable, traditional shopping malls must adapt to changes in consumer behavior. Bringing a significant number of households to the mall property will allow for more efficient use of already developed land, helping to achieve the General Plan objectives of preserving agricultural land and single-family housing in other parts of Provo. Bringing a mix of "missing middle" for-sale and multifamily housing into proximity to commercial and transit options will create "places for individuals, families, businesses, and institutions to thrive," a Key Theme of the General Plan.

Initial conversations with Provo City staff did not generate any significant concerns about impacts on existing infrastructure. Because it will be an infill development project on a site already designed for high intensity use, much of the necessary infrastructure is already in the area. Increases in some impacts will be at least partially offset by decreases due to the removal of interior mall space.

The project will be completed in several multi-year phases, allowing for any adjustments to capacity to be made over time. The civil engineer project has provided a high-level infrastructure plan as part of the Concept Plan application accompanying this General Plan Amendment application



Kyle Godat
Brixton Provo Mall LLC

ATTACHMENT 4 – TRAFFIC STUDY RECOMMENDATIONS



ATTACHMENT 5 – NEIGHBORHOOD FEEDBACK

Public Feedback Themes - Redevelopment of Provo Towne Centre

1. Affordability & Housing Displacement

- **Concern about displacement** of residents in the Shady Acres mobile home park was repeatedly raised.
- Residents and advocates urged the development team to:
 - **Delay redevelopment** of that area or prioritize rehousing current residents.
 - **Provide pathways** for displaced residents to buy townhomes (e.g., priority purchase rights, grants, or matching funds).
 - Explore **alternatives to displacement**, such as integrating existing units or reconfiguring phasing.
- Developers acknowledged these concerns and committed to **individual conversations** and exploring supportive solutions.

2. Walkability, Community Connectivity & Public Space

- Residents expressed strong support for:
 - **Walkable design**
 - **Mixed-use integration**
 - **Community-oriented architecture** with plazas, green space, and recreational areas.
- However, many criticized the current layout for:
 - Placing a **roundabout/traffic circle** at the heart of the site, which they felt breaks community connectivity.
 - Lacking **visible and obvious open space** or amenities for children and families.
 - **Losing indoor gathering space** (like the current mall) that is usable year-round.

3. Parking Strategy and Site Efficiency

- Many attendees were concerned about the amount of **surface parking**, calling it a poor use of valuable land.
- Developers responded that structured parking (wrap and podium style) is already planned and that the overall number of surface spaces will be reduced.
- Residents advocated for:
 - **Higher parking density** (e.g., garages or underground) to free up space for housing or parks.
 - **Preservation of indoor amenities** in place of parking.

4. Tenant Retention and Small Business Support

- Attendees emphasized the importance of **retaining local businesses**, especially creative or community-serving tenants.

- Suggestions included:
 - Offering **affordable commercial lease rates**.
 - Creating space for **small, local entrepreneurs**.
 - Maintaining a **community feel** through tenant mix rather than maximizing rent.

5. Site Phasing and Prioritization

- Residents questioned why construction would **start with the trailer park**, which affects the most vulnerable.
- Developers explained this was due to **phased parking logistics**, but acknowledged the optics and committed to reevaluating displacement timing.

6. Community Character and Owner-Occupancy

- Several residents advocated for:
 - **Owner-occupied units**, especially townhomes, to build long-term community stability.
 - Avoiding the project becoming dominated by student renters or transient tenants.
 - Including **CC&R requirements** to promote homeownership.

7. Transit & Infrastructure Concerns

- Positive comments about existing **BRT/UVX access**, but concern about:
 - **Union Pacific train delays** on Freedom Blvd (unresolved).
 - **Traffic impacts** of the roundabout.
 - **Water supply** and **school funding** implications from growth and partial property tax reinvestment (HTRZ).

6.18.25 Neighborhood Meeting Minutes:

Proposed plan for 23 acres at 1095 S 500 W (Provo Towne Centre), including changes to the General Plan from Commercial to Transit Oriented Development, and changes from the Manufactured Home Park Zone and the Regional Shopping Center Zone to the Interim Transit Oriented Development Zone

Justin Long from Brixton Capital introduced himself and the project. He explained that Brixton Capital is a private real estate group focused on commercial properties with experience in retail, multifamily, office, and hospitality sectors. Long mentioned that Brixton Capital has owned Provo Town Center since 2016 and highlighted recent changes, including the addition of a full-service Target store.

Long discussed the secular shift in shopping habits away from indoor malls to outdoor-oriented retail environments, which accelerated during the COVID-19 pandemic. He emphasized the growing demand for mixed-use developments that promote walkability and proximity to transit centers.

Robert Schmidt from PEG Companies introduced himself and the company, mentioning their 22-year history in Provo and previous developments in the area. Schmidt explained PEG's philosophy of reimagining communities and building properties with resort-style amenities.

The presenters then outlined the proposed plan for the redevelopment:

- Over 80 townhomes for sale
- 1300 apartment units
- Development in 5 phases over approximately 8 years
- 9% of units affordable at 80% Area Median Income (AMI) level
- 3% of units affordable at 60% AMI level
- Retention of Target, JCPenney, and Cinemark as anchor tenants
- Reduction of commercial space from approximately 1 million square feet to 600,000 square feet
- Creation of a central plaza and community-focused environment
- Improved vehicular, pedestrian, and bike access

The presenters showed renderings and a site plan of the proposed development, emphasizing the creation of gathering spaces, the integration of residential and commercial areas, and the importance of creating a sustainable, mixed-use project.

Following the presentation, residents asked questions and expressed concerns about various aspects of the project:

- Green space and seating areas: A resident suggested including more trees and seating throughout the open spaces to make them more inviting for people to spend time in, rather than just pass through.
- Construction timeline and impact: Questions were raised about the timing of construction in relation to the University Avenue bridge project and how it might affect traffic flow.
- Housing and Transit Reinvestment Zone (HTRZ): Concern for future property taxes being returned to the property owner and not going to the schools. The developers confirmed they were requesting to apply for the HTRZ, a state-run program that provides tax incentives for qualifying projects.
- Mobile home park residents: Concerns were expressed about the fate of current residents in the mobile home park, which would be replaced by townhomes in the proposed plan. The developers acknowledged the impact and stated they would work with each tenant individually, following state regulations regarding notice periods.
- Affordability and local businesses: Questions were raised about maintaining affordability for both housing and commercial spaces, and how local businesses might be affected by the redevelopment.

- Traffic and parking: Residents expressed concerns about the proposed roundabout in the central area and its impact on pedestrian safety and community feel. The developers explained their approach to balancing vehicular access with pedestrian-friendly design.
- Family-friendly amenities: Several residents emphasized the need for more family-oriented spaces and amenities, particularly for children.
- Indoor spaces: Some residents expressed disappointment about the loss of indoor mall space, particularly for winter activities and community gatherings.
- Environmental considerations: Questions were raised about water usage and sustainability measures in the project.
- Integration with surrounding neighborhoods: Residents asked about how the new development would connect with and impact nearby residential areas.

The developers addressed these concerns, emphasizing that the project was still in the early stages and that many details were yet to be finalized. They expressed willingness to consider residents' feedback as they move forward with the planning process.

Neighborhood Coordinator Rachel Breen explained the next steps in the development process:

- The developers are still going through the review process with city staff.
- Once the plans pass review, the proposal will go to the Planning Commission and then to the City Council to approve the General Plan Map and Zone Map amendments.
- Residents can make public comments at the Planning Commission and City Council hearings. Residents can also email the Planning Commission at dspublichearings@provo.gov, the City Council at council@provo.gov, or submit feedback online at www.opencityhall.provo.org.
- If the Zone changes and General Plan amendments are approved, the developers will then submit a Project Plan application, which will go before the Planning Commission for more public feedback.

7.7.25 Email

Dear Planning Commission,

I am writing to express my significant concerns regarding the PEG Development proposal presented on June 18th. As a long-term resident and property owner in Provo since 1997, I have witnessed the evolution of our city's commercial and residential landscape firsthand, including the decline of East Bay and the closure of major retailers like Sears. My observations, coupled with a deep understanding of our local economy and community, lead me to believe this proposal warrants a critical evaluation.

My primary concerns are as follows:

Fiscal Impact and Tax Burden on Current Residents

The proposition to return 80% of property taxes to PEG Development raises serious questions about equitable tax distribution. Current Provo residents, including myself, already bear a substantial property tax burden (over \$2,000 annually in my case). Shifting this financial responsibility disproportionately onto existing taxpayers for the benefit of a new development is unacceptable. For many, including myself, increased taxes directly impact our ability to afford essential living expenses, such as vital medical supplies like insulin for my Type 1 diabetes and food. A default on property taxes would jeopardize my home and rental property, assets I have invested in for over 20 years to secure my future. This proposal directly threatens the financial stability and well-being of long-standing residents.

Neighborhood Stability and Enforcement of City Policies

I've observed a concerning trend in my neighborhood, where single-person, older households are being displaced by out-of-state investors who often disregard Provo City's housing policies. This lack of enforcement leads to deteriorating property conditions, neglected maintenance (e.g., faulty gutters causing basement flooding), and overcrowding in rental units, ultimately eroding the quality of life for long-term residents. I foresee the PEG development exacerbating these issues, leading to a decline in neighborhood standards and an increased burden on city services if not properly managed and enforced.

True Affordability and Economic Reality

While "affordable" housing was mentioned, the definition provided by PEG Development appears disconnected from the economic realities of Utah residents. With an average home price of \$500,000 and a required income of \$110,000 for loan qualification, it is unclear how many prospective buyers for the Provo area genuinely meet these criteria to keep the families in the area and not turn this into a rental area. I urge the commission to consider a more realistic assessment of what "affordable" truly means for our community's workforce and families.

Water Resources and Infrastructure Strain

Provo City is already grappling with water shortages. The presentation did not adequately address how the proposed development, with its influx of new residents, will secure a sustainable water supply. While a "low price" for water has been mentioned, I recall similar assurances from my time in Davis County where secondary water was free, yet issues still arose. A comprehensive, publicly transparent plan for water acquisition and conservation for this development, especially in light of existing and future water scarcity, is critical before any commitments are made. A feasibility study from the public water association is imperative.

Business Sustainability and Traffic Impact

The presentation lacked compelling reasons for businesses to thrive and remain within the proposed complex. Without addressing the underlying issues of customer traffic and accessibility that contributed to the demise of previous commercial ventures like Sears, I am concerned this development will face similar challenges, ultimately failing to deliver on its economic promises.

I strongly urge the Planning Commission to thoroughly re-evaluate this proposal. It appears that the current plan is misaligned with the long-term vision and capacity of Provo's ecosystem, business environment, real estate market, and, most importantly, its taxpayers. Prioritizing the needs of existing residents and securing genuine buy-in from potential homeowners should precede any commitments that involve significant tax abatements or infrastructure strains. Let us ensure that any development truly benefits the entire community, rather than phasing out those who have built and sustained Provo.

Sincerely,

David

David C. Whipple

9.9.25 Email

Dear Planning Commission (and councilmembers),

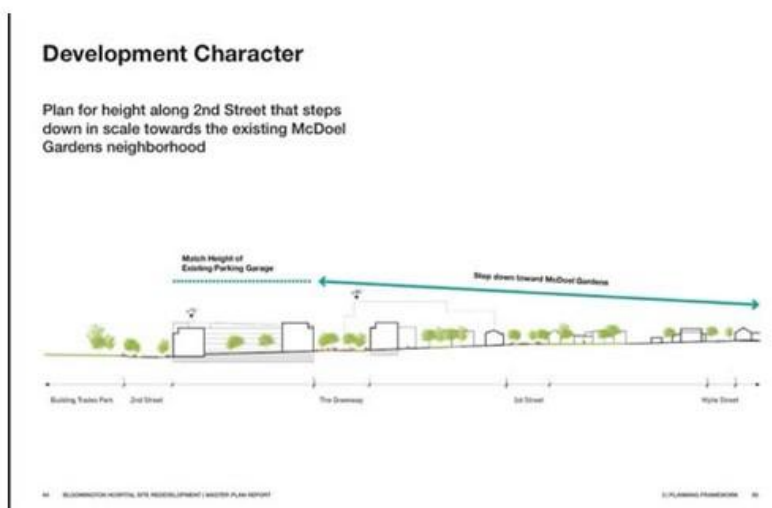
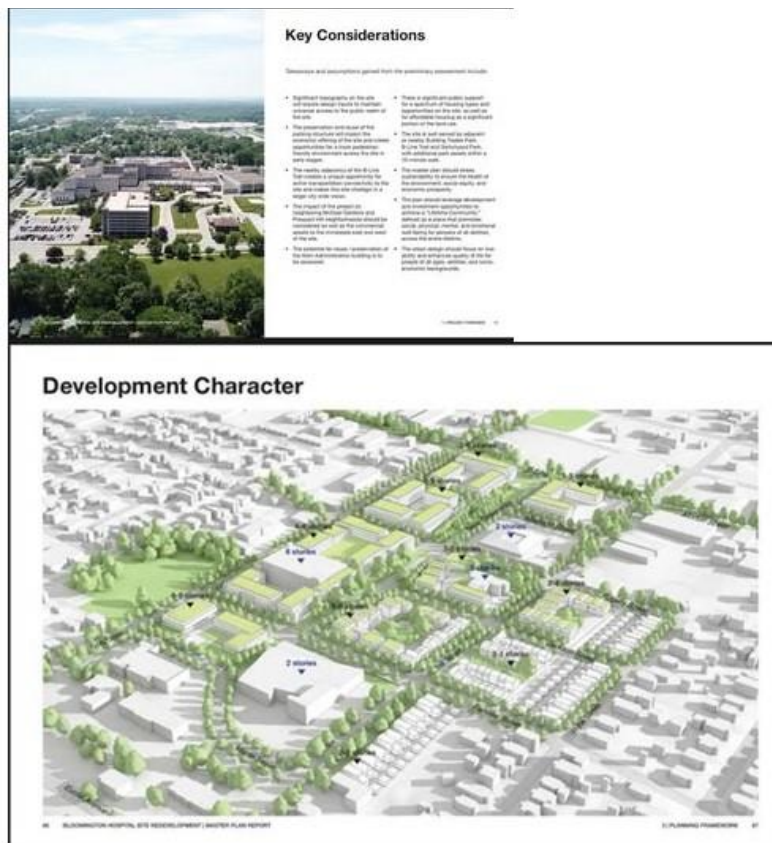
I would like to provide input for your consideration regarding the proposed redevelopment at Provo Towne Center Mall.

A few years ago, I participated in a community input panel for a similar redevelopment project during my time in graduate school in Indiana. I share my experience and some of the documents from that project proposal for your consideration as you weigh zoning and planning decisions. The city of Bloomington, IN acquired a very large parcel of land when Indiana University Health sold their hospital complex in order to build a new hospital elsewhere. The old hospital site had similar potential for Bloomington as the current mall redevelopment does for Provo. Furthermore, there were very similar concerns from the community about housing scarcity/affordability, cohesion of the new developments with surrounding communities, green space, walkability, and worries about housing density.

Below are some photos from the master plan of the old hospital site that the city of Bloomington developed in partnership with community residents. The thing I love about their plan, which was very intentional, was that the height and density of housing nearest to surrounding neighborhoods matched the character of already existing housing. The height and density increased gradually from there. And they intentionally planned car-free green spaces, connected pathways to surrounding businesses and recreational trails, and retrofitted a previously very busy road in order to connect the development to an adjacent park in a pedestrian-friendly way.

The first image includes aerial views of the original hospital site for context. Second is the development plan the city came up with. Third is a lateral view showcasing the gradual increase in height and density towards the center.





If interested, you may [read the full report proposed by Bloomington in 2021](#). It outlines key considerations such as connecting transit corridors, traffic, connection points to existing businesses, trails, neighborhoods, and emphasizes the goal to match and enhance the character of the city and its neighborhoods, both in choices of architectural design and in terms of how the community could use the space long term.

I hope Provo City incorporates similar design elements for the Provo Towne Center redevelopment.

Best,
Brent Hutchison

2.2.26 Emails

Ryan Roberts

District 2

Provo city,

I love the proposed plan for East Bay mall. I hope that this kind of development can bring provo the lift it needs to secure ourselves financially and bring life to a forgotten and drab part of the city. I voted for our city to be well planned and managed not just logistically but also financially and esthetically. That to me means a city that operates on a budget designed for our current and future circumstances, doesnt collect debt as the fast and easy way to fund growth and doesnt default to the cheapest easiest and often the ugliest solution to challenges set before us. With that in mind, i want to raise my continuing concern over the future of the mobile home park, Shady Acres.

I understand that Brixton currently owns the land on which the park is located and i am fully aware that property rights are extremely wide and discretionary in favor of the land owner, as they should be. However, Brixton Capital has the means and, in my opinion, a moral duty to make sure these people are properly taken care of. I would like to see Provo city demand that Brixton provide legally binding plans to ensure the safety and well being of the families that will be displaced by this development.

Merely giving these people time beyond the legal minimum to figure out their situation isnt sufficient effort or concern shown by Brixton. I also voted for the current members of the counsel and mayor because Provo became distracted at the allure of economic growth and forgot about its people. I believe the current council has the right people to take up this position on behalf of the affected people in balance with the great economic boon this will bring to Provo.

This is the the moment provo city council can demonstrate how things can be and should be done. The right thing for Brixton to do and provo city is to use the resouces they have at their disposal to ensure that those that are going to be displaced are or have the means to be properly housed. Not merely given a long clock before they are turned out to fend for themselves in a city where everyone knows there is nowhere financially viable for them to go.

With hopefull regard,



Mr. Rvan Michael Roberts

Dear Planning Commission,

Thank you for your thoughtful work for the South Town area. I want to add my voice to advocate for the children and their parents. Have you had a focus group with young parents about this space? I highly recommend it! And ask that you consider doing so.

When a space is delightful and thoughtful for children and their parents, it becomes a family-inviting place. While raising my 5 children, we have lived in Seattle, DC metro area, Houston, Bloomington Indiana and Louisville Kentucky. The places that encouraged me to get out with my kids were the places that had multiple children play spaces, creative spaces, restrooms for families, whimsical places like small mini fake stores for kids (think mini children's museums), and especially: weather friendly coverage.

Seattle excelled at this last bit-- lots of covering for rain, or in Utah's case, for sun. Although I'm afraid they've become more dog-friendly than kid friendly as demographics change.

But what's good for young families is also good for grandparents, who have the spending money.

I think because up until now Utah has been a single home kind of place where everyone had a backyard, parks are too far and wide and less accessible to apartment and town dwellers. Even Farmington Station which it supposed to be so family friendly is still so business-focused that it's lame for kids.

Thank you for your consideration: please think of the children, especially those who won't have their own backyard like other children. They need to play!

Sincerely,

Angela Paulsen

2.2.26 FB Post/Email

Hello, my name is Brianda, and I'm a Provo resident. I recently reached out to the owner of Provo Towne Centre with a proposal to reimagine the existing mall through adaptive reuse — transforming it into a greenhouse-centered, community-serving space focused on sustainability, food access, and long-term value. Shortly afterward, I learned that a proposal had been submitted to demolish the mall entirely.

I'm here because I believe it's important to pause before we default to teardown. Across the country, cities are choosing to reuse and reimagine existing structures instead of erasing them — not just for environmental reasons, but because reuse preserves character, history, and opportunity.

This isn't about stopping growth. It's about how we grow. Whether we replace spaces quickly, or whether we take time to ask if transformation could better serve the community.

I hope the city will consider whether demolition is the only path forward — or if imagination, reuse, and dialogue still have a place in Provo's future.

Thank you for your time.

- *ITEM 5** Brixton Capital requests a Zone Map Amendment from the RM (Manufactured Home Park) and SC3 (Regional Shopping Center) Zones to the ITOD (Interim Transit Oriented Development) Zone for 23 acres of land located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20250236

Applicant: PEG Development (Tyler Phelps), Brixton Capital (Kyle Godat)

Staff Coordinator: Aaron Ardmore

Property Owners: PROVO CITY; BRIXTON PROVO MALL LLC; BRIXTON ACRES LLC (ET AL)

Parcel ID#: 21:047:0021, 21:047:0022, 49:347:0002, 49:347:0003, 49:347:0004, 49:347:0005, 49:347:0007, 49:347:0012,

Acreage: 23.00

Number of Properties: 8

POSSIBLE ACTIONS:

1. **Recommend Approval** of the requested Zone Map Amendment. *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 25, 2026, 6:00 P.M.*
3. **Recommend Denial** of the requested Zone Map Amendment. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Current Legal Use: Current uses within the map area are as follows (moving from west to east): a mobile home park in the RM zone, commercial retail space within the mall and associated parking lots in the SC3 zone, commercial auto pad in the SC3 zone.

Relevant History: The Shady Acres mobile home park was developed in 1970 and has been zoned RM since 1974. The mall was developed in 1997 and was initially zoned SC3. Brixton purchased the mall property and Shady Acres in 2017. The city has been working with the applicants on this redevelopment plan for the north side of the mall property since early 2025.

Neighborhood Issues: This proposal was shared with District 5 (Central District) in their June 2025 meeting. The comments from that meeting and any received prior to this report are attached ("Neighborhood Feedback" – attachment 5) and include support, opposition, suggestions, and critique of the overall proposal.

Summary of Key Issues:

- Request to zone 23 acres to the ITOD zone for a mixed-use development proposal.
- Request comes with requests to amend the ITOD zone standards, amend the General Plan; and future requests to include HTRZ and PID funding.
- Analysis should find substantial benefits to the city to offset the multiple asks of the developer.
- The ITOD zone is the best fit to deliver the concept proposed by the property owner.

OVERVIEW

As part of a large redevelopment proposal for the north twenty-three acres of the mall property and Shady Acres mobile home park, owned by Brixton Capital, a request to rezone the area from the RM zone and SC3 zone to the ITOD zone has been submitted and reviewed by staff.

As staff have reviewed this request along with the associated ITOD zone text amendments, General Plan map amendment, and concept plans; staff have provided multiple rounds of comments and corrections to improve functionality. There are a variety of concerns from staff about these proposals, which have been noted to the applicant, and of which many have been proposed to be addressed in a draft development agreement that is currently being reviewed by the developers. The primary concerns are related to available sewer capacity, impacts to the road network, and phasing; but also include comments on the requested HTRZ (Housing and Transit Reinvestment Zone) and PID (Public Infrastructure District) funding requests that the City Council will decide on.

It should also be noted that staff have received more public feedback on this proposal than is typical, which is not surprising considering the prominent location, the project size and years of underutilization of the asset. Therefore, the final attachments of this report include all written public comments received prior to the writing of this report. Any received after will be read into the record at the hearing.

STAFF ANALYSIS

The accompanying concept plan for this rezone will be detailed and analyzed on its own in that staff report, but it is worth noting in this report that the current iteration of the plan is not meeting the full potential for a mixed-use, walkable development. The distance between uses, the proposed street network, and parking in the current plan indicates a car-dependent or auto-centric design currently. However, modifications can still be made between now and when the developer comes back with full project plans to address some of those issues, and the ITOD zone will enable that type of development.

Evaluating the proposed zone change with the criteria required in Provo City Code 14.02.020 assumes that the applications heard prior to this (the text amendments to the ITOD zone and the amendment to the General Plan Map) have been approved. Below is that analysis of this zone map amendment:

(a) Public purpose for the amendment[s] in question.

Staff response: The applicant's statement to justify this Zone Map amendment is attached ("Zone Map Amendment Justification" – attachment 3) and includes the following stated purpose: "Changing the designation of this area to TOD would help achieve multiple objectives of the General Plan, including providing increased density and infill development near public transportation, offering a mix of housing types and price points, and

redeveloping a portion of the East Bay neighborhood” and that the proposal should “create places for individuals, families, businesses, and institutions to thrive.”

(b) Confirmation that the public purpose is best served by the amendment[s] in question.

Staff response: Staff believe that this amendment can achieve the stated public purpose above. Amending the zones from RM and SC3 to ITOD will enable the property owner to develop a mixed-use project that meets the above goals.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives.

Staff response: This proposed Zone Map amendment is compatible with the following goals:

GP, ch.3, goal 1: Strike a balanced approach in locating land uses that aligns transit, land use, economics, and open space.

GP, ch.4, goal 1b: Consider revising regulations to encourage development of a mix of housing types.

GP, ch.5, goal 1e: Encourage incorporation of gateway developments and compact commercial properties that integrate both social and retail needs into designated mixed-use centers.

DT Master Plan, ch.4. goal 2: Continue to amend regulations for new development as the area continues to evolve.

DT Master Plan, ch.5, goal 4: Create new outdoor gathering spaces.

(d) Consistency of the proposed amendment with the General Plan’s “timing and sequencing” provisions on changes of use, insofar as they are articulated.

Staff response: There are concerns regarding available sewer infrastructure and needed roadway improvements related to the timing of this request. The city is continuing to work with the developers on agreements to address the phasing of construction, future sewer improvements, and roadway improvements through written agreements.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan’s articulated policies.

Staff response: This Zone map amendment has a potential to hinder attainment of goals and policies related to providing adequate infrastructure to all parts of the city. As noted above, the sewer demands of the proposed project would limit future connections without significant upgrades. The same is true for roadway improvements needed in and around the project area. The traffic study for this project has identified several nearby road improvements that would be needed at buildout (see “Traffic Study Recommendations” – attachment 4).

(f) Adverse impacts on adjacent landowners.

Staff response: Adverse impacts are evident with current residents of the Shady Acres mobile home park in the west portion of the project area, as they would be required to find new housing once development begins. There are also potential adverse impacts for the property owners adjacent to the project area related to increased traffic and increased light and noise disturbances.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Staff response: They are correct.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Staff response: Noted, staff have analyzed with precedence to the policies.

In addition to the above criteria, page 45 of the General Plan directs staff to evaluate any rezone request with residential uses using the following questions: (staff responses in **bold**)

- Would the rezone promote one of the top 3 housing strategies? **Yes, see below.**
 - Promote a mix of home types, sizes, and price points **Yes, the mix of townhomes and apartments in the concept plan would deliver different home types and price points for the area.**
 - Support zoning to promote ADUs and infill development **No.**
 - Recognize the value of single-family neighborhoods **Yes and no, the only single-family neighborhood being impacted by this request is proposed to be removed to develop townhomes, which could become its own single-family neighborhood.**
- Are utilities and streets currently within 300 feet of the property proposed for rezone? **Yes, but as noted in the report would be inadequate for the full buildout.**
- Would the rezone exclude land that is currently being used for agricultural use? **Yes.**
- Does the rezone facilitate housing that has reasonable proximity (1/2 mile) to public transit stops or stations? **Yes.**
- Would the rezone encourage development of environmentally or geologically sensitive, or fire or flood prone, lands? If so, has the applicant demonstrated these issues can reasonably be mitigated? **No.**
- Would the proposed rezone facilitate the increase of on-street parking within 500 feet of the subject property? If so, is the applicant willing to guarantee use of a TDM in

relation to the property to reduce the need for on-street parking? **No, the concept has more than sufficient parking for the uses.**

- Would the rezone facilitate a housing development where a majority of the housing units are owner-occupied? Is the applicant willing to guarantee such? **No, at this time the offer would not be a majority (83 of the 1383 proposed units = 6%).**
- Would the proposed rezone facilitate a housing development where at least 10% of the housing units are attainable to those making between 50-79% AMI? Is the applicant willing to guarantee such? **No, at this time the offer is not 10% (83 of the 1383 proposed units = 6%).**

The SC3 zone allows for 20% of the site to be used for residential uses. With 23 acres of the mall property being rezoned to facilitate housing, staff are concerned that 20% of the remaining SC3 zone could also be used residentially. In another similar situation, the city disallowed further residential development of the remaining SC3 zone by development agreement. Considering the amount of commercial square footage being lost with redevelopment, staff suggests that no further reduction in commercial acreage be permitted.

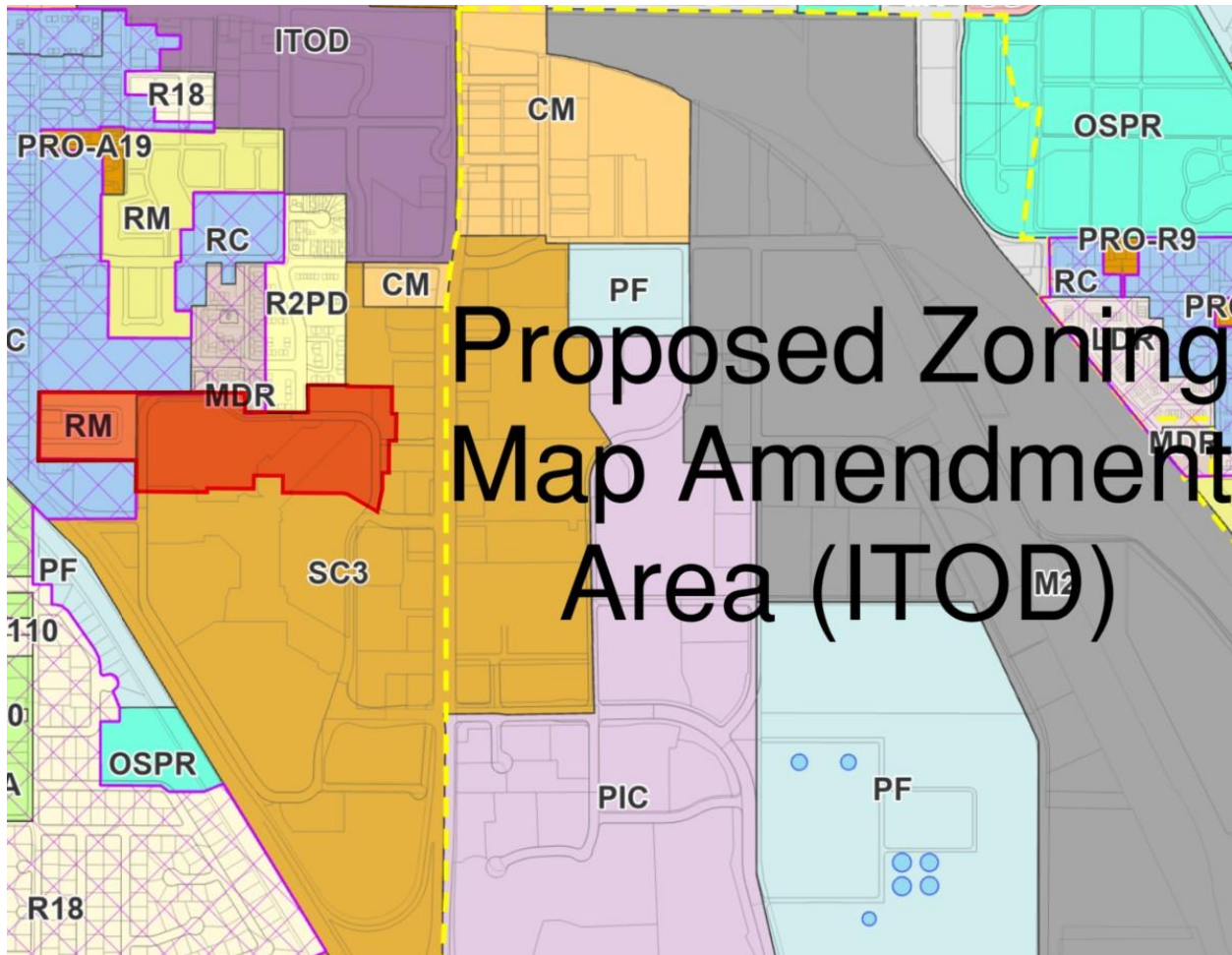
CONCLUSIONS

Staff are continuing to work through a development agreement that will be evaluated by the City Council with this zone map amendment application. The intention is that all the remaining staff concerns will be addressed with that agreement, which will be necessary to move this forward to the City Council. Staff believe the ITOD zone is the best match for the proposed development, which would be a catalyst for bringing new energy and vitality into an area of the city that has needed reinvestment. If all the other requests of the developer are granted, staff hope that the ITOD zone will produce the mixed-use, walkable development that is called for in the purpose and objectives of the zone.

ATTACHMENTS

1. Proposed Zone Map Description
2. Concept Site Plan
3. Zone Map Amendment Justification
4. Traffic Study Recommendations
5. Neighborhood Feedback

ATTACHMENT 1 – PROPOSED ZONE MAP DESCRIPTION



A part of Lots 2, 3, 4, 5 and 7 of the Amended Provo Towne Centre Mall Subdivision recorded 11 March, 1999 as Entry No. 29378 and as Map No. 7952 in the Official Records of Utah County, together with more land, located in the Southeast Quarter of Section 12, Township 7 South, Range 2 East, Salt Lake Base and Meridian, U.S. Survey, in the City of Provo, Utah County, Utah:

Beginning at a point on the Westerly line of said Lot 5, located 78.89 feet North 89°46'24" East along the South line of said Section 12; and 348.68 feet North 0°13'36" West from a Brass Cap Monument found marking the South Quarter Corner of Said Section 12; said South Quarter Corner is located 2652.80 feet South 89°46'24" West along said Section line from a Brass Cap Monument found marking the Southeast corner of said Section 12; and running thence North 0°43'46" East 174.84 feet along said Westerly line; thence North 89°38'01" West 564.35 feet to and along a fence called for in that certain Special Warranty Deed Entry No. 9949:2016 in the Official Records of Utah County, to the Westerly line of said Special Warranty Deed, also being the Easterly line of 500 West Street; thence North 0°23'54" East 386.94 feet along said Easterly line to the intersection thereof with the Southerly line of that certain

Warranty Deed recorded November 30, 2009 as Entry No. 123118:2009 in the Official Records of Utah County; thence along said Southerly line the following three courses: North 89°55'54" East 113.37 feet; South 89°32'57" East 446.56 feet; and South 89°21'25" East 1.65 feet to the Northwest corner of said Lot 5; thence along the Northerly, Westerly and Easterly lines of said Amended Subdivision the following fifteen courses: South 89°21'25" East 318.08 feet; North 87°47'44" East 81.92 feet; South 87°04'33" East 68.53 feet; South 89°41'34" East 148.03 feet; South 1°34'26" East 107.69 feet; South 89°34'31" East 357.18 feet; North 0°16'18" West 155.24 feet to the Northwest corner of said Lot 4; South 89°34'31" East 222.84 feet; South 0°04'13" West 6.21 feet; South 89°03'39" East 254.20 feet to the Northeast corner of said Lot 7; South 0°09'33" West 150.86 feet; South 88°45'03" East 25.21 feet; South 0°41'03" West 152.27 feet; North 89°19'07" West 39.99 feet; and South 0°17'07" West 181.68 feet; thence North 89°19'07" West 37.10 feet to the Westerly line of said Lot 7; thence along said Westerly line and said Westerly line extended Southerly the following two courses: South 0°00'30" East 106.25 feet to a point of curvature; and Southwesterly along the arc of a 248.00 foot radius curve to the right a distance of 120.25 feet (Central Angle equals 27°46'56" and Long Chord bears South 13°52'58" West 119.08 feet); thence North 59°33'25" West 193.42 feet along a non-radial line to a point of curvature; thence Northwesterly along the arc of a 50.00 foot radius curve to the left a distance of 25.93 feet (Central Angle equals 29°42'49" and Long Chord bears North 74°24'50" West 25.64 feet) to a point of tangency; thence North 89°16'14" West 346.09 feet; thence North 0°43'46" East 94.13 feet; thence North 89°16'14" West 165.00 feet; thence South 0°43'46" West 75.67 feet; thence North 89°16'14" West 264.18 feet; thence South 0°43'46" West 22.26 feet; thence North 89°16'14" West 404.66 feet to said Westerly line of Lot 5 and the point of beginning.

Note: said Amended Plat and said Deeds have been rotated 30" counter-clockwise from the Plat record in order to match a NAD83(2011) Utah Central Zone reference to North.

Contains 1,002,813 sq. ft.

Or 23.021 acres

ATTACHMENT 2 – CONCEPT SITE PLAN



ATTACHMENT 3 – ZONE MAP AMENDMENT JUSTIFICATION

120 S Sierra,
Solana Beach
CA 92075.

(858) 683-7100
info@brixtoncapital.com
brixtoncapital.com

B R I X T O N

DATE: May 7th, 2025

TO: Provo City

RE: Provo Town Center Zoning Map Amendment

Brixton Capital and PEG Development, on behalf of Brixton Provo Mall, LLC, and Brixton Acres, LLC, do hereby propose an amendment to the Provo City General Plan Designation for the area identified on the attached exhibit.

The area is currently designated as SC3 Commercial, and it is proposed that it be redesignated as Transit-Oriented Development (TOD). This change is in harmony with the intent of Provo City's 2023 General Plan and is necessary to adapt to the evolving demands of retail consumers and residents.

As part of an ongoing renovation plan, the property owner intends to redevelop a large portion of the Provo Towne Centre Mall with a mix of residential and commercial uses. The proposed mix of uses includes revitalized retail, dining, entertainment, professional office space, and other appropriate and beneficial uses. It also includes for-sale and for-rent housing, a portion of which is intended to be affordable.

Under the current general plan and zoning designations, this mix of uses would not be permitted, necessitating the General Plan Map change to TOD. The subject area is near UTA bus-rapid-transit (BRT) and Front-Runner commuter rail stations, and it is well-served by existing road infrastructure. It is also directly south of property already designated as TOD on the General Plan Map. Changing the designation of this area to TOD would help achieve multiple objectives of the General Plan, including providing increased density and infill development near public transportation, offering a mix of housing types and price points, and redeveloping a portion of the East Bay neighborhood.

To remain economically viable, traditional shopping malls must adapt to changes in consumer behavior. Bringing a significant number of households to the mall property will allow for more efficient use of already developed land, helping to achieve the General Plan objectives of preserving agricultural land and single-family housing in other parts of Provo. Bringing a mix of "missing middle" for-sale and multifamily housing into proximity to commercial and transit options will create "places for individuals, families, businesses, and institutions to thrive," a Key Theme of the General Plan.

Initial conversations with Provo City staff did not generate any significant concerns about impacts on existing infrastructure. Because it will be an infill development project on a site already designed for high intensity use, much of the necessary infrastructure is already in the area. Increases in some impacts will be at least partially offset by decreases due to the removal of interior mall space.

The project will be completed in several multi-year phases, allowing for any adjustments to capacity to be made over time. The civil engineer project has provided a high-level infrastructure plan as part of the Concept Plan application accompanying this General Plan Amendment application



Kyle Godat
Brixton Provo Mall LLC

ATTACHMENT 4 – TRAFFIC STUDY RECOMMENDATIONS



ATTACHMENT 5 – NEIGHBORHOOD FEEDBACK

Public Feedback Themes - Redevelopment of Provo Towne Centre

1. Affordability & Housing Displacement

- **Concern about displacement** of residents in the Shady Acres mobile home park was repeatedly raised.
- Residents and advocates urged the development team to:
 - **Delay redevelopment** of that area or prioritize rehousing current residents.
 - **Provide pathways** for displaced residents to buy townhomes (e.g., priority purchase rights, grants, or matching funds).
 - Explore **alternatives to displacement**, such as integrating existing units or reconfiguring phasing.
- Developers acknowledged these concerns and committed to **individual conversations** and exploring supportive solutions.

2. Walkability, Community Connectivity & Public Space

- Residents expressed strong support for:
 - **Walkable design**
 - **Mixed-use integration**
 - **Community-oriented architecture** with plazas, green space, and recreational areas.
- However, many criticized the current layout for:
 - Placing a **roundabout/traffic circle** at the heart of the site, which they felt breaks community connectivity.
 - Lacking **visible and obvious open space** or amenities for children and families.
 - **Losing indoor gathering space** (like the current mall) that is usable year-round.

3. Parking Strategy and Site Efficiency

- Many attendees were concerned about the amount of **surface parking**, calling it a poor use of valuable land.
- Developers responded that structured parking (wrap and podium style) is already planned and that the overall number of surface spaces will be reduced.
- Residents advocated for:
 - **Higher parking density** (e.g., garages or underground) to free up space for housing or parks.
 - **Preservation of indoor amenities** in place of parking.

4. Tenant Retention and Small Business Support

- Attendees emphasized the importance of **retaining local businesses**, especially creative or community-serving tenants.

- Suggestions included:
 - Offering **affordable commercial lease rates**.
 - Creating space for **small, local entrepreneurs**.
 - Maintaining a **community feel** through tenant mix rather than maximizing rent.

5. Site Phasing and Prioritization

- Residents questioned why construction would **start with the trailer park**, which affects the most vulnerable.
- Developers explained this was due to **phased parking logistics**, but acknowledged the optics and committed to reevaluating displacement timing.

6. Community Character and Owner-Occupancy

- Several residents advocated for:
 - **Owner-occupied units**, especially townhomes, to build long-term community stability.
 - Avoiding the project becoming dominated by student renters or transient tenants.
 - Including **CC&R requirements** to promote homeownership.

7. Transit & Infrastructure Concerns

- Positive comments about existing **BRT/UVX access**, but concern about:
 - **Union Pacific train delays** on Freedom Blvd (unresolved).
 - **Traffic impacts** of the roundabout.
 - **Water supply** and **school funding** implications from growth and partial property tax reinvestment (HTRZ).

6.18.25 Neighborhood Meeting Minutes:

Proposed plan for 23 acres at 1095 S 500 W (Provo Towne Centre), including changes to the General Plan from Commercial to Transit Oriented Development, and changes from the Manufactured Home Park Zone and the Regional Shopping Center Zone to the Interim Transit Oriented Development Zone

Justin Long from Brixton Capital introduced himself and the project. He explained that Brixton Capital is a private real estate group focused on commercial properties with experience in retail, multifamily, office, and hospitality sectors. Long mentioned that Brixton Capital has owned Provo Town Center since 2016 and highlighted recent changes, including the addition of a full-service Target store.

Long discussed the secular shift in shopping habits away from indoor malls to outdoor-oriented retail environments, which accelerated during the COVID-19 pandemic. He emphasized the growing demand for mixed-use developments that promote walkability and proximity to transit centers.

Robert Schmidt from PEG Companies introduced himself and the company, mentioning their 22-year history in Provo and previous developments in the area. Schmidt explained PEG's philosophy of reimagining communities and building properties with resort-style amenities.

The presenters then outlined the proposed plan for the redevelopment:

- Over 80 townhomes for sale
- 1300 apartment units
- Development in 5 phases over approximately 8 years
- 9% of units affordable at 80% Area Median Income (AMI) level
- 3% of units affordable at 60% AMI level
- Retention of Target, JCPenney, and Cinemark as anchor tenants
- Reduction of commercial space from approximately 1 million square feet to 600,000 square feet
- Creation of a central plaza and community-focused environment
- Improved vehicular, pedestrian, and bike access

The presenters showed renderings and a site plan of the proposed development, emphasizing the creation of gathering spaces, the integration of residential and commercial areas, and the importance of creating a sustainable, mixed-use project.

Following the presentation, residents asked questions and expressed concerns about various aspects of the project:

- Green space and seating areas: A resident suggested including more trees and seating throughout the open spaces to make them more inviting for people to spend time in, rather than just pass through.
- Construction timeline and impact: Questions were raised about the timing of construction in relation to the University Avenue bridge project and how it might affect traffic flow.
- Housing and Transit Reinvestment Zone (HTRZ): Concern for future property taxes being returned to the property owner and not going to the schools. The developers confirmed they were requesting to apply for the HTRZ, a state-run program that provides tax incentives for qualifying projects.
- Mobile home park residents: Concerns were expressed about the fate of current residents in the mobile home park, which would be replaced by townhomes in the proposed plan. The developers acknowledged the impact and stated they would work with each tenant individually, following state regulations regarding notice periods.
- Affordability and local businesses: Questions were raised about maintaining affordability for both housing and commercial spaces, and how local businesses might be affected by the redevelopment.

- Traffic and parking: Residents expressed concerns about the proposed roundabout in the central area and its impact on pedestrian safety and community feel. The developers explained their approach to balancing vehicular access with pedestrian-friendly design.
- Family-friendly amenities: Several residents emphasized the need for more family-oriented spaces and amenities, particularly for children.
- Indoor spaces: Some residents expressed disappointment about the loss of indoor mall space, particularly for winter activities and community gatherings.
- Environmental considerations: Questions were raised about water usage and sustainability measures in the project.
- Integration with surrounding neighborhoods: Residents asked about how the new development would connect with and impact nearby residential areas.

The developers addressed these concerns, emphasizing that the project was still in the early stages and that many details were yet to be finalized. They expressed willingness to consider residents' feedback as they move forward with the planning process.

Neighborhood Coordinator Rachel Breen explained the next steps in the development process:

- The developers are still going through the review process with city staff.
- Once the plans pass review, the proposal will go to the Planning Commission and then to the City Council to approve the General Plan Map and Zone Map amendments.
- Residents can make public comments at the Planning Commission and City Council hearings. Residents can also email the Planning Commission at dspublichearings@provo.gov, the City Council at council@provo.gov, or submit feedback online at www.opencityhall.provo.org.
- If the Zone changes and General Plan amendments are approved, the developers will then submit a Project Plan application, which will go before the Planning Commission for more public feedback.

7.7.25 Email

Dear Planning Commission,

I am writing to express my significant concerns regarding the PEG Development proposal presented on June 18th. As a long-term resident and property owner in Provo since 1997, I have witnessed the evolution of our city's commercial and residential landscape firsthand, including the decline of East Bay and the closure of major retailers like Sears. My observations, coupled with a deep understanding of our local economy and community, lead me to believe this proposal warrants a critical evaluation.

My primary concerns are as follows:

Fiscal Impact and Tax Burden on Current Residents

The proposition to return 80% of property taxes to PEG Development raises serious questions about equitable tax distribution. Current Provo residents, including myself, already bear a substantial property tax burden (over \$2,000 annually in my case). Shifting this financial responsibility disproportionately onto existing taxpayers for the benefit of a new development is unacceptable. For many, including myself, increased taxes directly impact our ability to afford essential living expenses, such as vital medical supplies like insulin for my Type 1 diabetes and food. A default on property taxes would jeopardize my home and rental property, assets I have invested in for over 20 years to secure my future. This proposal directly threatens the financial stability and well-being of long-standing residents.

Neighborhood Stability and Enforcement of City Policies

I've observed a concerning trend in my neighborhood, where single-person, older households are being displaced by out-of-state investors who often disregard Provo City's housing policies. This lack of enforcement leads to deteriorating property conditions, neglected maintenance (e.g., faulty gutters causing basement flooding), and overcrowding in rental units, ultimately eroding the quality of life for long-term residents. I foresee the PEG development exacerbating these issues, leading to a decline in neighborhood standards and an increased burden on city services if not properly managed and enforced.

True Affordability and Economic Reality

While "affordable" housing was mentioned, the definition provided by PEG Development appears disconnected from the economic realities of Utah residents. With an average home price of \$500,000 and a required income of \$110,000 for loan qualification, it is unclear how many prospective buyers for the Provo area genuinely meet these criteria to keep the families in the area and not turn this into a rental area. I urge the commission to consider a more realistic assessment of what "affordable" truly means for our community's workforce and families.

Water Resources and Infrastructure Strain

Provo City is already grappling with water shortages. The presentation did not adequately address how the proposed development, with its influx of new residents, will secure a sustainable water supply. While a "low price" for water has been mentioned, I recall similar assurances from my time in Davis County where secondary water was free, yet issues still arose. A comprehensive, publicly transparent plan for water acquisition and conservation for this development, especially in light of existing and future water scarcity, is critical before any commitments are made. A feasibility study from the public water association is imperative.

Business Sustainability and Traffic Impact

The presentation lacked compelling reasons for businesses to thrive and remain within the proposed complex. Without addressing the underlying issues of customer traffic and accessibility that contributed to the demise of previous commercial ventures like Sears, I am concerned this development will face similar challenges, ultimately failing to deliver on its economic promises.

I strongly urge the Planning Commission to thoroughly re-evaluate this proposal. It appears that the current plan is misaligned with the long-term vision and capacity of Provo's ecosystem, business environment, real estate market, and, most importantly, its taxpayers. Prioritizing the needs of existing residents and securing genuine buy-in from potential homeowners should precede any commitments that involve significant tax abatements or infrastructure strains. Let us ensure that any development truly benefits the entire community, rather than phasing out those who have built and sustained Provo.

Sincerely,

David

David C. Whipple

9.9.25 Email

Dear Planning Commission (and councilmembers),

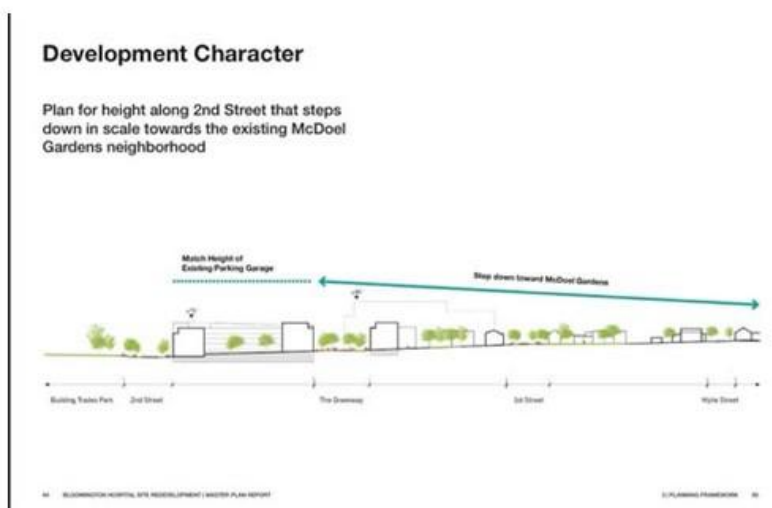
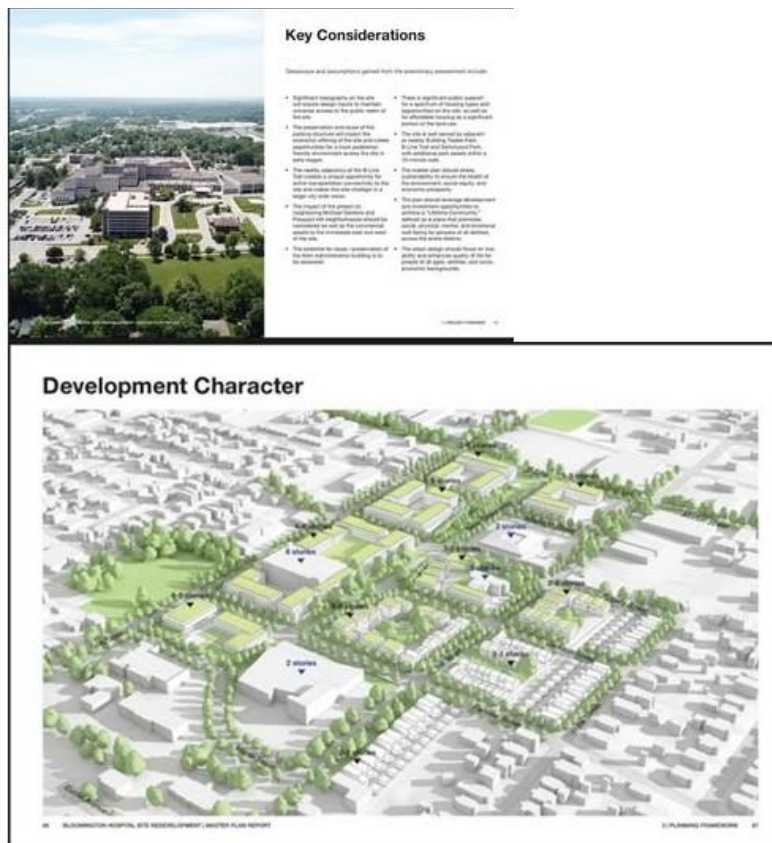
I would like to provide input for your consideration regarding the proposed redevelopment at Provo Towne Center Mall.

A few years ago, I participated in a community input panel for a similar redevelopment project during my time in graduate school in Indiana. I share my experience and some of the documents from that project proposal for your consideration as you weigh zoning and planning decisions. The city of Bloomington, IN acquired a very large parcel of land when Indiana University Health sold their hospital complex in order to build a new hospital elsewhere. The old hospital site had similar potential for Bloomington as the current mall redevelopment does for Provo. Furthermore, there were very similar concerns from the community about housing scarcity/affordability, cohesion of the new developments with surrounding communities, green space, walkability, and worries about housing density.

Below are some photos from the master plan of the old hospital site that the city of Bloomington developed in partnership with community residents. The thing I love about their plan, which was very intentional, was that the height and density of housing nearest to surrounding neighborhoods matched the character of already existing housing. The height and density increased gradually from there. And they intentionally planned car-free green spaces, connected pathways to surrounding businesses and recreational trails, and retrofitted a previously very busy road in order to connect the development to an adjacent park in a pedestrian-friendly way.

The first image includes aerial views of the original hospital site for context. Second is the development plan the city came up with. Third is a lateral view showcasing the gradual increase in height and density towards the center.





If interested, you may [read the full report proposed by Bloomington in 2021](#). It outlines key considerations such as connecting transit corridors, traffic, connection points to existing businesses, trails, neighborhoods, and emphasizes the goal to match and enhance the character of the city and its neighborhoods, both in choices of architectural design and in terms of how the community could use the space long term.

I hope Provo City incorporates similar design elements for the Provo Towne Center redevelopment.

Best,
Brent Hutchison

2.2.26 Emails

Ryan Roberts

District 2

Provo city,

I love the proposed plan for East Bay mall. I hope that this kind of development can bring provo the lift it needs to secure ourselves financially and bring life to a forgotten and drab part of the city. I voted for our city to be well planned and managed not just logistically but also financially and esthetically. That to me means a city that operates on a budget designed for our current and future circumstances, doesnt collect debt as the fast and easy way to fund growth and doesnt default to the cheapest easiest and often the ugliest solution to challenges set before us. With that in mind, i want to raise my continuing concern over the future of the mobile home park, Shady Acres.

I understand that Brixton currently owns the land on which the park is located and i am fully aware that property rights are extremely wide and discretionary in favor of the land owner, as they should be. However, Brixton Capital has the means and, in my opinion, a moral duty to make sure these people are properly taken care of. I would like to see Provo city demand that Brixton provide legally binding plans to ensure the safety and well being of the families that will be displaced by this development.

Merely giving these people time beyond the legal minimum to figure out their situation isnt sufficient effort or concern shown by Brixton. I also voted for the current members of the counsel and mayor because Provo became distracted at the allure of economic growth and forgot about its people. I believe the current council has the right people to take up this position on behalf of the affected people in balance with the great economic boon this will bring to Provo.

This is the the moment provo city council can demonstrate how things can be and should be done. The right thing for Brixton to do and provo city is to use the resouces they have at their disposal to ensure that those that are going to be displaced are or have the means to be properly housed. Not merely given a long clock before they are turned out to fend for themselves in a city where everyone knows there is nowhere financially viable for them to go.

With hopefull regard,



Mr. Ryan Michael Roberts

Dear Planning Commission,

Thank you for your thoughtful work for the South Town area. I want to add my voice to advocate for the children and their parents. Have you had a focus group with young parents about this space? I highly recommend it! And ask that you consider doing so.

When a space is delightful and thoughtful for children and their parents, it becomes a family-inviting place. While raising my 5 children, we have lived in Seattle, DC metro area, Houston, Bloomington Indiana and Louisville Kentucky. The places that encouraged me to get out with my kids were the places that had multiple children play spaces, creative spaces, restrooms for families, whimsical places like small mini fake stores for kids (think mini children's museums), and especially: weather friendly coverage.

Seattle excelled at this last bit-- lots of covering for rain, or in Utah's case, for sun. Although I'm afraid they've become more dog-friendly than kid friendly as demographics change.

But what's good for young families is also good for grandparents, who have the spending money.

I think because up until now Utah has been a single home kind of place where everyone had a backyard, parks are too far and wide and less accessible to apartment and town dwellers. Even Farmington Station which it supposed to be so family friendly is still so business-focused that it's lame for kids.

Thank you for your consideration: please think of the children, especially those who won't have their own backyard like other children. They need to play!

Sincerely,

Angela Paulsen

2.2.26 FB Post/Email

Hello, my name is Brianda, and I'm a Provo resident. I recently reached out to the owner of Provo Towne Centre with a proposal to reimagine the existing mall through adaptive reuse — transforming it into a greenhouse-centered, community-serving space focused on sustainability, food access, and long-term value. Shortly afterward, I learned that a proposal had been submitted to demolish the mall entirely.

I'm here because I believe it's important to pause before we default to teardown. Across the country, cities are choosing to reuse and reimagine existing structures instead of erasing them — not just for environmental reasons, but because reuse preserves character, history, and opportunity.

This isn't about stopping growth. It's about how we grow. Whether we replace spaces quickly, or whether we take time to ask if transformation could better serve the community.

I hope the city will consider whether demolition is the only path forward — or if imagination, reuse, and dialogue still have a place in Provo's future.

Thank you for your time.

ITEM 6 Brixton Capital requests Concept Plan approval for a mixed-use redevelopment project over 23 acres of land in a proposed ITOD (Interim Transit Oriented Development) Zone, located at 1095 S 500 W and 1200 S Towne Centre Boulevard. Franklin South and East Bay Neighborhoods. Aaron Ardmore (801) 852-6404 aardmore@provo.gov
PLCP20250237

Applicant: PEG Development (Tyler Phelps), Brixton Capital (Kyle Godat)

Staff Coordinator: Aaron Ardmore

Property Owners: PROVO CITY;
BRIXTON PROVO MALL LLC; BRIXTON
ACRES LLC (ET AL)

Parcel ID#: 21:047:0021, 21:047:0022,
49:347:0002, 49:347:0003, 49:347:0004,
49:347:0005, 49:347:0007, 49:347:0012,

Acreage: 23.00

Number of Properties: 8

POSSIBLE ACTIONS:

1. **Approve** the requested concept plan, subject to approval of the zone map amendment to the ITOD zone (3.11.26 PC Item #5). *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 25, 2026, 6:00 P.M.*
3. **Deny** the requested concept plan. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Current Legal Use: Current uses within the map area are as follows (moving from west to east): a mobile home park in the RM zone, commercial retail space within the mall and associated parking lots in the SC3 zone, commercial auto pad in the SC3 zone.

Relevant History: The Shady Acres mobile home park was developed in 1970 and has been zoned RM since 1974. The mall was developed in 1997 and was initially zoned SC3. Brixton purchased the mall property and Shady Acres in 2017. The city has been working with the applicants on this redevelopment plan for the north side of the mall property since early 2025.

Neighborhood Issues: This proposal was shared with District 5 (Central District) in their June 2025 meeting. The comments from that meeting and any received prior to this report are included with the staff reports for Items 4 and 5 (please see previous staff reports for these comments) and include support, opposition, suggestions, and critique of the overall proposal.

Summary of Key Issues:

- Request subject to approval of the associated ITOD zone text amendments, General Plan Map amendment, and Zone map amendment (Items 3-5 on the 3.11.26 PC agenda).
- The Planning Commission has held two study meetings in the last few months to receive information on the concept from the applicants and give some initial feedback.
- The current concept plan leaves staff with some concerns about design and adverse impacts related to sewer and roadway infrastructure.

OVERVIEW

PEG Development and Brixton Capital have worked together to develop a concept plan to redevelop the north area of the mall properties. Along with the proposed text amendments, a General Plan Map amendment, and the Zone map amendment, this concept plan should be evaluated carefully to ensure that best practices are used and that the plans could comply with city codes and standards. While a concept plan is typically meant to paint a picture of what could come with a proposed zone change, this concept plan will be an exhibit in a development agreement, so the Planning Commission should verify its ability to meet code requirements as well as the purpose and objectives of the ITOD zone.

A general overview of the concept will be provided here, with specific numbers and details provided in the “Findings of Fact” section and attachments. The plan is to complete a partial demolition of the northern section of the mall structure to make way for new parking, commercial uses, open spaces, and a new east-west roadway. North of that roadway it is proposed to build a phased series of apartments and townhomes, totaling 1,383 new residential units at buildout.

The first phase would include the remodel of the mall, installation of new commercial pads and open spaces, installation of the new east-west roadway and roundabout, 72 townhomes on the Shady Acres parcel, 11 additional townhomes directly north of the mall adjacent to the north property line, and 209 apartments in the phase one apartment building. The townhome products are proposed to be for sale, income restricted units, while the apartments would all be for rent.

Phases two through five would add another 1,091 apartments across four additional buildings, built in phases (shown in attachments). Each building has associated amenities conceived in the concept plans to satisfy the amenity requirements of the ITOD zone.

STAFF ANALYSIS

Staff have noted some important factors to consider regarding the overall redevelopment proposal from this group in the earlier staff reports, so I will not repeat those here. However, one of the main concerns related to this concept plan from staff and from the Planning Commission study sessions has been the lack of connectivity and accessibility without a vehicle. While the developer has provided a “travel paths” exhibit (attached below), staff are underwhelmed with the current site layout and pedestrian/bicycle connectivity, noting that the current version doesn’t do enough to provide the “ample pedestrian ways” that the zone intends.

Another concern that may not be immediately evident when looking at the amount of parking spaces around the mall is that the concept plans have not identified the proper amount of parking stalls required for the new residential units. The calculations that were used by the applicant show a city code requirement of 833 spaces at buildout, but

the correct calculations show a requirement of 1,859 spaces (1,026 spaces short). While the applicant could come back with parking reduction requests on future project plan applications, this parking shortfall in the concept plans is worth noting.

A final concept plan concern is the availability of amenities. The total number and acreage of amenities provided at buildout is more than sufficient to meet code requirements. However, staff have concern that the townhome units don't have amenities of their own and could end up not feeling comfortable or not being provided access to the amenities around and within the apartment buildings. Additionally, there should be guarantees that the townhomes will not be charged in the future for use of amenities that are off-site to the townhomes. Staff simply want to identify concerns now that will need to be addressed with the preliminary project plan.

Outside of the concerns above and the concerns with future sewer and roadway improvements noted in earlier staff reports, staff are encouraged by the idea of redeveloping the mall property to bring more residents, businesses, and energy to this area of the city. The overall idea is supported, but staff hope that working through the details of the development agreement will provide comfort to move this proposal forward, and that the future project plan applications for the development phases will more carefully consider the goals of the ITOD zone to provide "mixed-use development which is intended to provide housing and business opportunities adjacent to public transit and thereby facilitate increases in the use of public transit and reduce City-wide traffic and congestion elsewhere."

FINDINGS OF FACT

1. The properties are currently in the RM and SC3 Zones. (PCC 14.15 & 14.20)
2. The proposed zone is the ITOD zone. (PCC 14.23 – *with proposed amendments*)
3. The total number of residential units is 1,383.
4. The total number of parking spaces for the residential units is shown as 1,000 (1.3 spaces per unit).
5. The total number of required parking spaces for the residential units (without reductions granted by the Planning Commission on future project plans) would be 1,859 spaces (1.125 per studio/one-bedroom (843 units) plus 1.687 per two/three-bedroom (540 units)). (PCC 14.37.060 & 14.23.120)
6. Total required amenity space is 128,014 square feet. (PCC 14.23.160 & 14.34.330)
7. Total provided amenity space in concept plans is 134,543 square feet.
8. Total amenity score required is 60 points. (PCC 14.34.330).
9. Total amenity score provided in concept plans varies between 110-218 by phase.

CONCLUSIONS

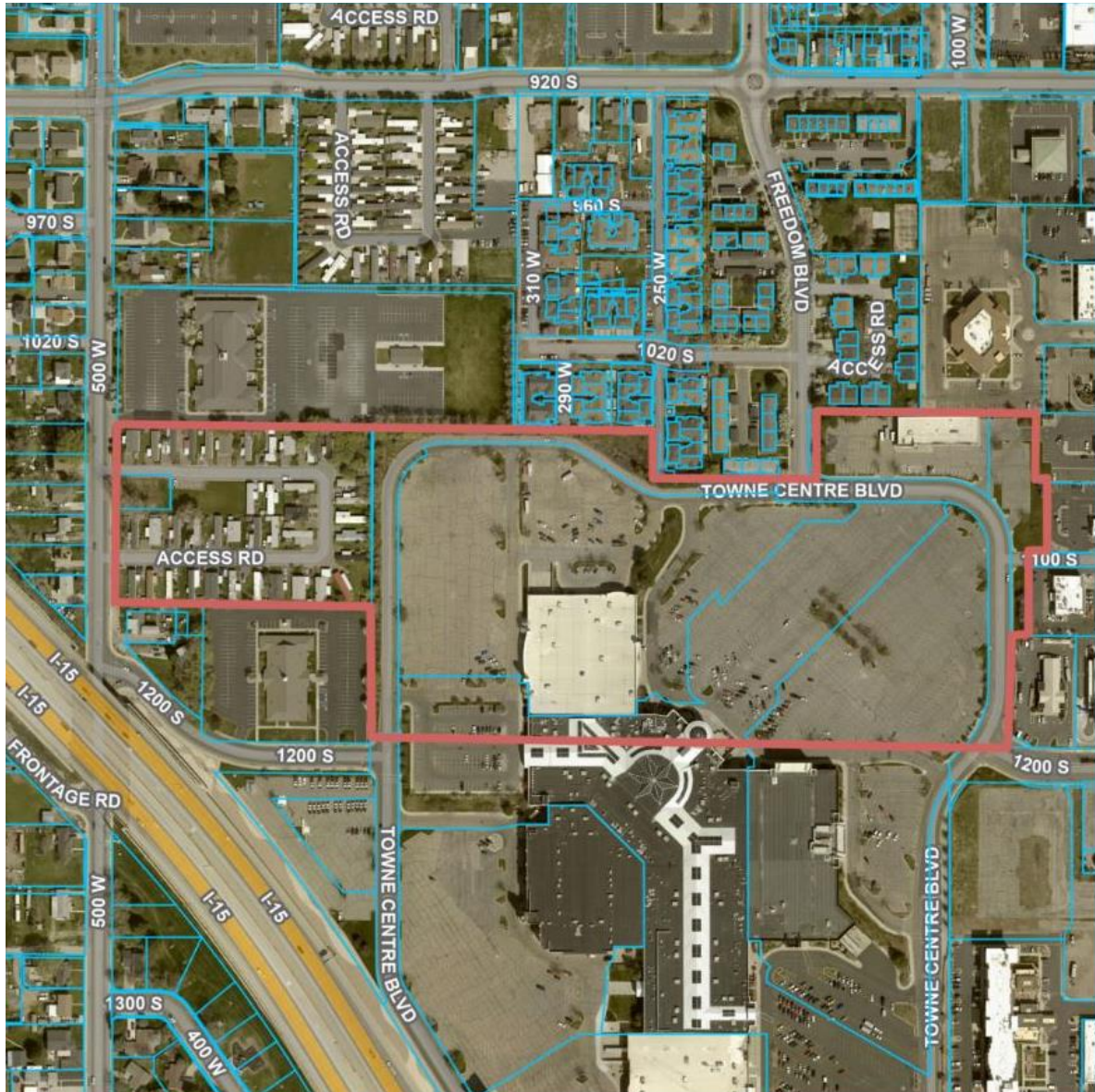
As noted above, staff are supportive of the proposal to redevelop a portion of the mall property to bring a variety of new uses and residents to the area. However, there are remaining concerns detailed throughout the staff reports for this project and specifically detailed in this concept plan submittal. If the City Council finds that there is enough value to the city to approve the text amendments, general plan, zoning, and funding

mechanisms for this project; staff believe that the concerns and details within the site layout and concept plans may be worked out in the required future project plan and plat submittals.

ATTACHMENTS

1. Project Area
2. Concept Site Plan
3. Travel Paths Exhibit
4. Amenity Details
5. Phasing Plan
6. Residential Unit Summary
7. Mall Redevelopment Summary
8. Townhome Site Plan/Elevations
9. Townhome Floor Plans
10. Phase 1 Apartment Renderings
11. Phase 1 Apartment Floor Plans

ATTACHMENT 1 – PROJECT AREA



ATTACHMENT 2 – CONCEPT SITE PLAN



ATTACHMENT 3 – TRAVEL PATHS EXHIBIT



Site plan for the proposed 100-unit development at 1000 S. 10th St. The plan shows three phases of construction. Phase One (red) includes a 100-unit building, an outdoor amenity (5,119 sq ft), and an amenity deck (8,302 sq ft). Phase Two (yellow) includes a 100-unit building, an outdoor amenity (4,645 sq ft), and an amenity deck (15,963 sq ft). Phase Three (blue) includes a 100-unit building, an outdoor amenity (4,645 sq ft), and an amenity deck (15,963 sq ft). The total area is 100,000 sq ft. The plan also shows parking spaces, landscaping, and a street view.

Phase	Unit Count	Outdoor Amenity (sq ft)	Amenity Deck (sq ft)
Phase One	100	5,119	8,302
Phase Two	100	4,645	15,963
Phase Three	100	4,645	15,963

UNIT MIX SUBJECT TO CHARGE

Phase One

Multifamily Amenities: Score Sheet

Type	Amenity	Score Allowed/R required	Score	Square Footage: Required	Square Footage: Provided
EV	Electric Vehicle Charging Stations (≥ 5% of spaces)	45			
EV	Electric Vehicle -ready charging infrastructure (≥ 5% of spaces)	35			
Bikes	Bike repair Station	20			
Pet	Open Space for Pets and Pet Waste	42	42		1,318
Pet	Pet Grooming Station	10	10		400
Gathering	Indoor Gathering Space (within main building)	30	30		1,847
Gathering	Clubhouse (separate from main building)	28	28		1,011
Gathering- Outdoor	Outdoor gathering space with 10+ features	34			
Gathering- Outdoor	Outdoor gathering space with 7-10 features	32			
Gathering- Outdoor	Outdoor gathering space with 4-6 features	30		A Minimum of 19,462 sf	
Gathering- Outdoor	Outdoor gathering space with 1-3 features	28	28		7,801
Gathering- Outdoor	Outdoor Open Area, no features (e.g., field, vacant courtyard)	20			
Playground	Playground (if ≥ 50% of units have 2 or more bedrooms)	28			
Playground	Playground (if ≥ 50% of units have fewer than bedrooms)	23			
Recreation	Pool	28	28		7,755
Recreation	Hot Tub	28	28		565
Recreation	Gym	24	24		1,019
Recreation	Sport Court	24			
Recreation	Media Room	5			
Storage	Storage areas if	16			
Work	Co-work space	10			
	Total Required	60			
	Total Achieved		218		21,716

Apartment Square Footage (GSF)	194,620
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per 14.23.160.3	Total Amenity Required (10% of GSF)	19,462
per 14.23.160.3	Total Amenity Provided	21,716
per 14.23.160.3.b	Total Amenity allowed outside on the ground level (up to 50% of Amenity)	9,731
per 14.23.160.3.b	Total Amenity Provided	9,119

Phase Two

Multifamily Amenities: Score Sheet

Type	Amenity	Score Allowed/R required	Score	Square Footage: Required	Square Footage: Provided
EV	Electric Vehicle Charging Stations (≥ 5% of spaces)	45			
EV	Electric Vehicle -ready charging infrastructure (≥ 5% of spaces)	35			
Bikes	Bike repair Station	20			2,906
Pet	Open Space for Pets and Pet Waste	42	42		200
Pet	Pet Grooming Station	10	10		
Gathering	Indoor Gathering Space (within main building)	30	30		2,000
Gathering	Clubhouse (separate from main building)	28	28		1,485
Gathering- Outdoor	Outdoor gathering space with 10+ features	34			
Gathering- Outdoor	Outdoor gathering space with 7-10 features	32			
Gathering- Outdoor	Outdoor gathering space with 4-6 features	30		A Minimum of 28,009 sf	
Gathering- Outdoor	Outdoor gathering space with 1-3 features	28	28		9,400
Gathering- Outdoor	Outdoor Open Area, no features (e.g., field, vacant courtyard)	20	20		14,000
Playground	Playground (if ≥ 50% of units have 2 or more bedrooms)	28			
Playground	Playground (if ≥ 50% of units have fewer than bedrooms)	23			
Recreation	Pool	28			
Recreation	Hot Tub	28			
Recreation	Gym	24	24		1,000
Recreation	Sport Court	24			
Recreation	Media Room	5			
Storage	Storage areas if	16			
Work	Co-work space	10			
	Total Required	60			
	Total Achieved		182		30,991

Apartment Square Footage (GSF)	280,090
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per 14.23.160.3	Total Amenity Required (10% of GSF)	28,009
per 14.23.160.3	Total Amenity Provided	30,991
per 14.23.160.3.b	Total Amenity allowed outside on the ground level (up to 50% of Amenity)	14,005
per 14.23.160.3.b	Total Amenity Provided	14,000

Phase Three
Multifamily Amenities: Score Sheet

Type	Amenity	Score Allowed/R required	Score	Square Footage: Required	Square Footage: Provided
EV	Electric Vehicle Charging Stations (≥ 5% of spaces)	45			
EV	Electric Vehicle -ready charging infrastructure (≥ 5% of spaces)	35			
Bikes	Bike repair Station	20			
Pet	Open Space for Pets and Pet Waste	42			
Pet	Pet Grooming Station	10			
Gathering	Indoor Gathering Space (within main building)	30	30		2,870
Gathering	Clubhouse (separate from main building)	28	28		1,000
Gathering- Outdoor	Outdoor gathering space with 10+ features	34			
Gathering- Outdoor	Outdoor gathering space with 7-10 features	32			
Gathering- Outdoor	Outdoor gathering space with 4-6 features	30	30	A Minimum of 29,415 sf	10,900
Gathering- Outdoor	Outdoor gathering space with 1-3 features	28	28		4,330
Gathering- Outdoor	Outdoor Open Area, no features (e.g., field, vacant courtyard)	20	20		10,315
Playground	Playground (if ≥ 50% of units have 2 or more bedrooms)	28			
Playground	Playground (if ≥ 50% of units have fewer than bedrooms)	23			
Recreation	Pool	28			
Recreation	Hot Tub	28			
Recreation	Gym	24			
Recreation	Sport Court	24			
Recreation	Media Room	5			
Storage	Storage areas if	16			
Work	Co-work space	10			
	Total Required	60			
	Total Achieved		136		29,415

Apartment Square Footage (GSF)		292,700
per 14.23.160.3	Total Amenity Required (10% of GSF)	29,270
per 14.23.160.3	Total Amenity Provided	29,415
per 14.23.160.3.b	Total Amenity allowed outside on the ground level (up to 50% of Amenity)	14,635
per 14.23.160.3.b	Total Amenity Provided	14,645

Phase Four
Multifamily Amenities: Score Sheet

Type	Amenity	Score Allowed/R required	Score	Square Footage: Required	Square Footage: Provided
EV	Electric Vehicle Charging Stations (≥ 5% of spaces)	45			
EV	Electric Vehicle -ready charging infrastructure (≥ 5% of spaces)	35			
Bikes	Bike repair Station	20			
Pet	Open Space for Pets and Pet Waste	42			
Pet	Pet Grooming Station	10			
Gathering	Indoor Gathering Space (within main building)	30	30		5,213
Gathering	Clubhouse (separate from main building)	28	28		2,295
Gathering- Outdoor	Outdoor gathering space with 10+ features	34			
Gathering- Outdoor	Outdoor gathering space with 7-10 features	32			
Gathering- Outdoor	Outdoor gathering space with 4-6 features	30		A Minimum of 24,164 sf	
Gathering- Outdoor	Outdoor gathering space with 1-3 features	28	28		15,963
Gathering- Outdoor	Outdoor Open Area, no features (e.g., field, vacant courtyard)	20			
Playground	Playground (if ≥ 50% of units have 2 or more bedrooms)	28			
Playground	Playground (if ≥ 50% of units have fewer than bedrooms)	23			
Recreation	Pool	28	28		
Recreation	Hot Tub	28	28		
Recreation	Gym	24	24		1,000
Recreation	Sport Court	24			
Recreation	Media Room	5			
Storage	Storage areas if	16			
Work	Co-work space	10			
	Total Required	60			
	Total Achieved		166		24,471

Apartment Square Footage (GSF)		241,642
per 14.23.160.3	Total Amenity Required (10% of GSF)	24,164
per 14.23.160.3	Total Amenity Provided (on Podium)	24,471
per 14.23.160.3.b	Total Amenity allowed outside on the ground level (up to 50% of Amenity)	12,082
per 14.23.160.3.b	Total Amenity Provided	0

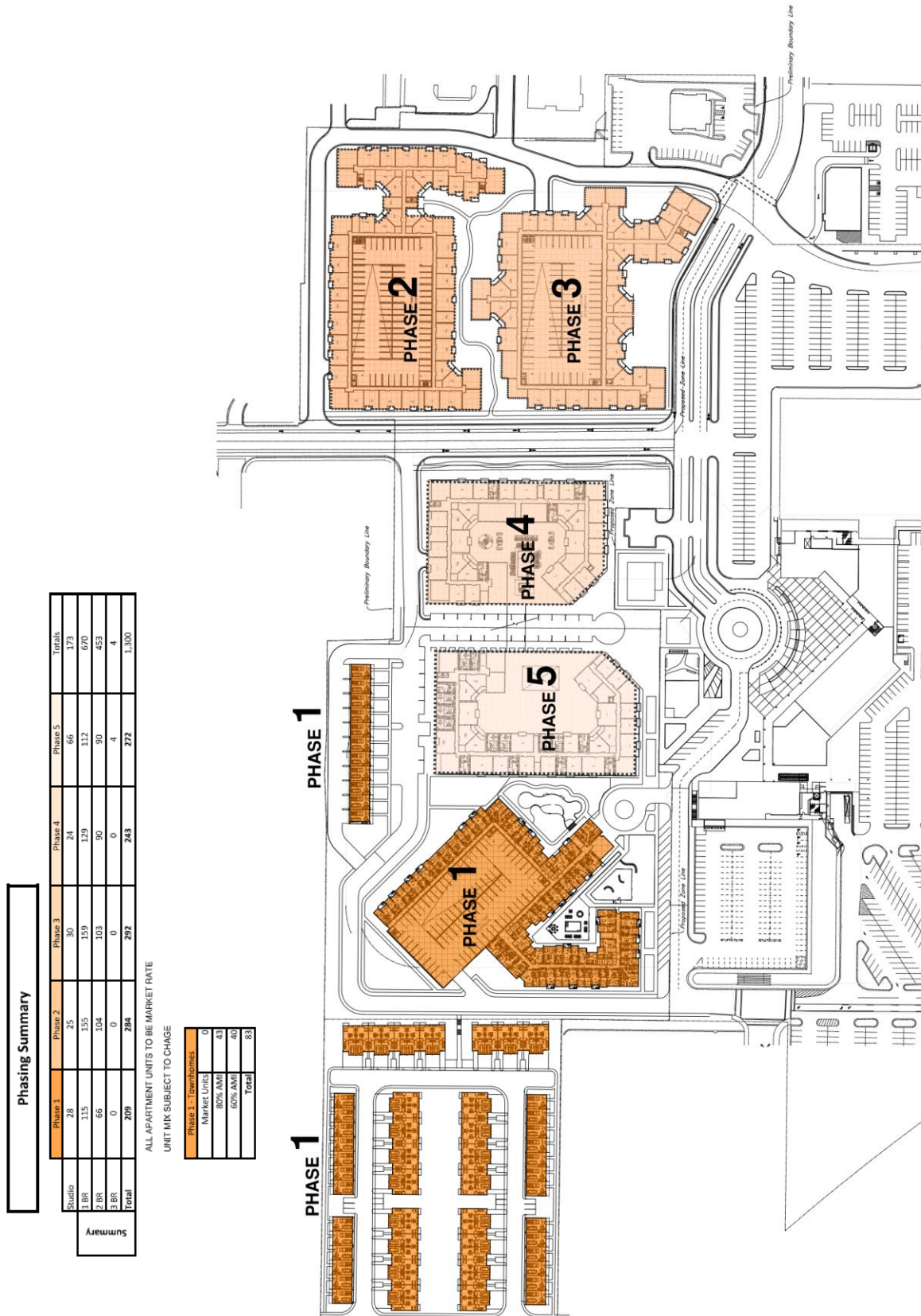
Phase Five
Multifamily Amenities: Score Sheet

Type	Amenity	Score Allowed/Required	Score	Square Footage: Required	Square Footage: Provided
EV	Electric Vehicle Charging Stations (≥ 5% of spaces)	45		A Minimum of 27,109 sf	
EV	Electric Vehicle -ready charging infrastructure (≥ 5% of spaces)	35			
Bikes	Bike repair Station	20			
Pet	Open Space for Pets and Pet Waste	42			
Pet	Pet Grooming Station	10			
Gathering	Indoor Gathering Space (within main building)	30	30		4,635
Gathering	Clubhouse (separate from main building)	28	28		1,085
Gathering-Outdoor	Outdoor gathering space with 10+ features	34			
Gathering-Outdoor	Outdoor gathering space with 7-10 features	32			
Gathering-Outdoor	Outdoor gathering space with 4-6 features	30			
Gathering-Outdoor	Outdoor gathering space with 1-3 features	28	28		21,230
Gathering-Outdoor	Outdoor Open Area, no features (e.g., field, vacant courtyard)	20			
Playground	Playground (if ≥ 50% of units have 2 or more bedrooms)	28			
Playground	Playground (if ≥ 50% of units have fewer than bedrooms)	23			
Recreation	Pool	28			
Recreation	Hot Tub	28			
Recreation	Gym	24	24		1,000
Recreation	Sport Court	24			
Recreation	Media Room	5			
Storage	Storage areas if	16			
Work	Co-work space	10			
	Total Required	60			
	Total Achieved		110		27,950

Apartment Square Footage (GSF)	271,090
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per 14.23.160.3	Total Amenity Required (10% of GSF)	27,109
per 14.23.160.3	Total Amenity Provided	27,950
per 14.23.160.3.b	Total Amenity allowed outside on the ground level (up to 50% of Amenity)	13,555
per 14.23.160.3.b	Total Amenity Provided	0

ATTACHMENT 5 – PHASING PLAN



UNIT MIX SUBJECT TO CHAGE

		Building 1	Building 2	Building 3	Building 4	Building 5	Totals	Unit Mix
Summary	Studio	28	25	30	24	66	173	13%
	1 BR	115	155	159	129	112	670	52%
	2 BR	66	104	103	90	90	453	35%
	3 BR	0	0	0	0	4	4	0%
	Total	209	284	292	243	272	1,300	100%

		Parking Provided	Parking Required
Parking Summary	Building 1	370	226
	Building 2	315	310
	Building 3	315	298
	Building 4	146	266
	Building 5	172	296
	Total	1,000	833

Phase 1 - Townhomes	
Market Units	0
80% AMI	43
60% AMI	40
Total	83

		Unit Count	Unit Mix	Total SF
Summary	Studio	28	13%	15,344
	1 BR	115	55%	82,134
	2 BR	66	32%	69,656
	3 BR	0	0%	0
	Total	209	100%	167,134

Area Summary		Apt Bldg (Gross)	Amenities (Gross)	
	Level 5	4,300	Fitness	1,019 sf
	Level 1	47,580		20,697 sf
	Level 2	47,580		
	Level 3	47,580		
	Level 4	47,580		
	Total	194,620	Total	21,716 sf

Area Calculations		
Rentable SF (RSF)		167,134
Average Unit Sf		800
Gross Sf (GSF)		194,620
	Efficiency	86%

Level 1	80 Stalls	32,030
Level 2	80 Stalls	32,030
Level 3	80 Stalls	32,030
Level 4	80 Stalls	32,030
Level 5	50 Stalls	22,176
	Total	370 150,296

[illegible]

	Unit Count	Unit Mix	Total SF
Studio	25	9%	13,700
1 BR	155	55%	108,570
2 BR	104	37%	116,740
3 BR	0	0%	0
Total	284	100%	239,010

Area Summary		Apt Bldg (Gross)	Amenities (Gross)	
	Level 1	56,018	Amenity	29,991 sf
	Level 2	56,018	Fitness	1,000 sf
	Level 3	56,018		
	Level 4	56,018		
	Level 5	56,018		
Total	280,090	Total	30,991 sf	

Area Calculations		
Rentable SF (RSF)		239,010
Average Unit Sf		842
Gross Sf (GSF)		280,090
	Efficiency	85%

Level 1	80 Stalls	32,030
Level 2	80 Stalls	32,030
Level 3	80 Stalls	32,030
Level 4	80 Stalls	32,030
Level 5	50 Stalls	22,176
	Total	370 150,296

[illegible]

		Unit Count	Unit Mix	Total SF
Summary	Studio	30	10%	16,440
	1 BR	159	54%	109,691
	2 BR	103	35%	114,680
	3 BR	0	0%	0
	Total	292	100%	240,811

Area Summary		Apt Bldg (Gross)	Amenities (Gross)	
	Level 1	58,540	Amenity	28,415 sf
	Level 2	58,540	Fitness	1,000 sf
	Level 3	58,540		
	Level 4	58,540		
	Level 5	58,540		
	Total	292,700	Total	29,415 sf

Area Calculations		
Rentable SF (RSF)		240,811
Average Unit Sf		825
Gross Sf (GSF)		292,700
	Efficiency	82%

Parking Garage Square Footage Calculations		
Level 1	80 Stalls	32,030
Level 2	80 Stalls	32,030
Level 3	80 Stalls	32,030
Level 4	80 Stalls	32,030
Level 5	50 Stalls	22,176
	Total	370 150,296

		Studio	Studio	1 Bedrooms			2 Bedrooms		Total	
		S-1C	S-2C	1B-1C	1B-2C	1B-3C	2B-1C	2B-2C		
	SF	548	548	704	685	675	1085	1150		
Building 3 (Phase 3)	Level 1	4	2	10	16	5	10	9	56	
	Level 2	4	2	11	16	5	12	9	59	
	Level 3	4	2	11	16	5	12	9	59	
	Level 4	4	2	11	16	5	12	9	59	
	Level 5	4	2	11	16	5	12	9	59	
Total Apartment Units		20	10	54	80	25	58	45	292	Units
Parking Required Apartm.		20	10	54	80	25	73	56	298	Stalls
Parking Guests									0	Stalls
Parking Required Total									298	Stalls
Parking Requ. Covered									0	Stalls
Parking Provided Garage									290	Stalls
Parking Provided Surface									25	Stalls
Total Parking Provided									315	Stalls

Phase 4 Summary

	Unit Count	Unit Mix	Total SF
Studio	24	11%	12,888
1 BR	129	59%	88,108
2 BR	67	30%	87,351
Live Work	23	11%	
Total	220	100%	188,347

	Apt Bldg (Gross)	Amenities (Gross)
Level 1	18,001	Amenity 23,471 sf
Level 2	18,001	
Level 3	41,128	Fitness 1,000 sf
Level 4	41,128	
Level 5	41,128	
Level 6	41,128	
Level 7	41,128	
Level 8	41,128	
Total	241,642	Total 24,471 sf

Area Calculations	
Rentable SF (RSF)	188,347
Average Unit Sf	856
Gross Sf (GSF)	241,642
Efficiency	78%

Parking Garage Square Footage Calculations		
Level 1	90 Stalls	33,335
Level 2	56 Stalls	22,384
Total	145	55,719

	Studio	1 Bedrooms				2 Bedrooms		Live Work	Total
	S-1D	1B-1D	1B-2D	1B-3D	1B-4D	2B-1D	2B-2D	2B-3D	
Building 4 (Phase 4)	SF 537	717	672	917	847	1102	1012	1561	
Level 1/2								23	23
Level 3	4	15	8	1	1	7	4		40
Level 4	5	16	8	1	1	8	6		45
Level 5	5	16	8	1	1	8	6		45
Level 6	5	16	8	1	1	8	6		45
Level 7	5	16	8	1	1	8	6		45
Total Apartment Units	24	79	40	5	5	39	28	23	243
Parking Required Apartm.	24	79	40	5	5	49	35	29	266
Parking Guests									0
Parking Required Total									266
Parking Requ. Covered									0
Parking Provided Garage									146
Parking Provided Surface									0
Total Parking Provided									146

Units
Stalls
Stalls
Stalls
Stalls
Stalls
Stalls

Phase 5 Summary

	Unit Count	Unit Mix	Total SF
Studio	66	24%	37,602
1 BR	112	41%	77,574
2 BR	90	33%	101,319
3 BR	4	1%	6,000
Total	272	100%	222,495

	Apt Bldg (Gross)	Amenities (Gross)
Level 1	32,925	Amenity 26,950 sf
Level 2	23,925	Fitness 1,000 sf
Level 3	42,848	
Level 4	42,848	
Level 5	42,848	
Level 6	42,848	
Level 7	42,848	
Total	271,090	Total 27,950 sf

Area Calculations	
Rentable SF (RSF)	222,495
Average Unit Sf	818
Gross Sf (GSF)	271,090
Efficiency	82%

Parking Garage Square Footage Calculations		
Level 1	85 Stalls	32,030
Level 2	60 Stalls	32,030
Total	145	64,060

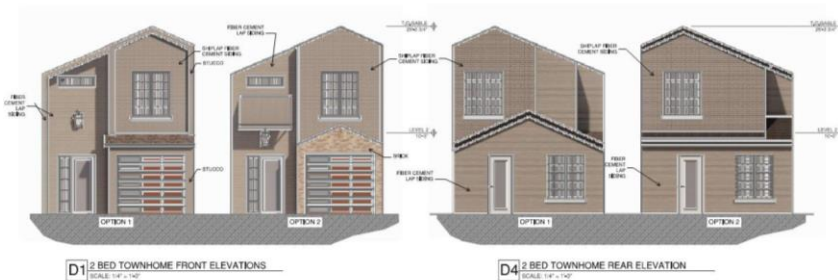
	Studio	Studio	1 Bedrooms			2 Bedrooms			Live Work	Live Work	Total
	S-1E	S-2E	1B-1E	1B-2E	1B-3E	2B-1E	2B-2E	2B-3E	2B-4E	3B-1E	
Building 5 (Phase 5)	SF 537	645	717	672	706	1102	1012	1033	1300	1500	
Level 1/2									23	4	27
Level 3	10	4	8	9	3	7	3	1			35
Level 4	9	4	8	12	3	8	5	1			41
Level 5	9	4	8	12	3	8	5	1			41
Level 6	9	4	8	12	3	8	5	1			41
Level 7	9	4	8	12	3	8	5	1			41
Total Apartment Units	46	20	40	57	15	39	23	5	23	4	272
Parking Required Apartm.	46	20	40	57	15	49	29	6	29	5	296
Parking Guests											0
Parking Required Total											296
Parking Requ. Covered											0
Parking Provided Garage											145
Parking Provided Surface											27
Total Parking Provided											172

Units
Stalls
Stalls
Stalls
Stalls
Stalls
Stalls

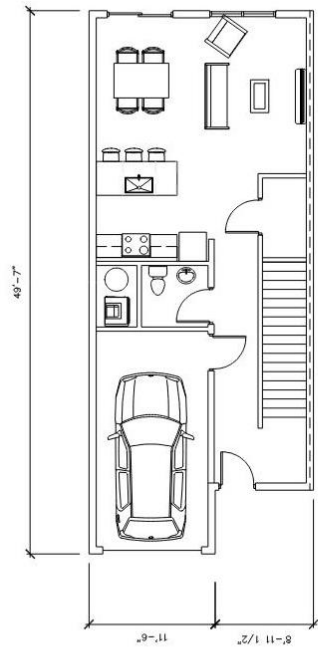
ATTACHMENT 7 – MALL REDEVELOPMENT SUMMARY



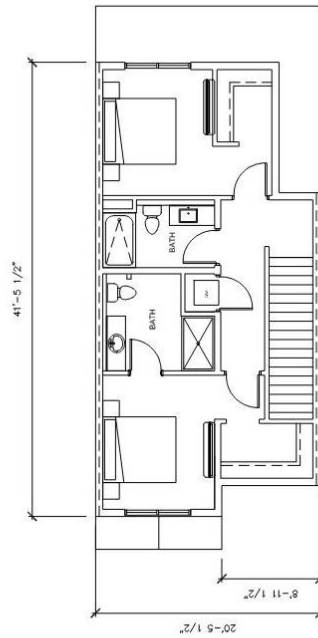
ATTACHMENT 8 – TOWNHOME SITE PLAN/ELEVATIONS



ATTACHMENT 9 – TOWNHOME FLOOR PLANS

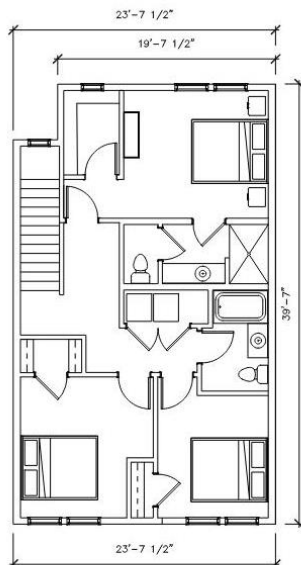


A1 2 BED TOWNHOME LEVEL ONE PLAN
SCALE: 1/4" = 1'-0"

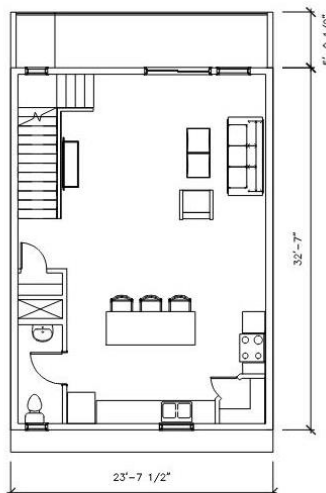


A2 2 BED TOWNHOME LEVEL TWO PLAN
SCALE: 1/4" = 1'-0"

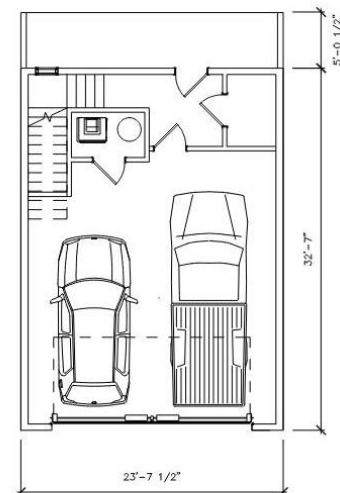
1,333 SF



A1 3 BED TOWNHOME LEVEL THREE PLAN
SCALE: 1/4" = 1'-0"



A2 3 BED TOWNHOME LEVEL TWO PLAN
SCALE: 1/4" = 1'-0"



A2 3 BED TOWNHOME LEVEL ONE PLAN
SCALE: 1/4" = 1'-0"

1,625 SF

ATTACHMENT 10 – PHASE 1 APARTMENT RENDERINGS



ATTACHMENT 11 – PHASE 1 APARTMENT FLOOR PLANS

